

PART 3

RESIDENTIAL DEVELOPMENT

PART 3 - RESIDENTIAL DEVELOPMENT

The City of Parramatta (the City) is planning for strong housing growth, which must balance the need for housing and economic growth with the need to protect and enhance housing diversity, heritage, local character and the City's environmental assets. Successful residential development champions quality design outcomes that are compatible with the surrounding context, creating a cohesive identity to the City's residential areas.

The following Sections contained within this Part of the DCP have been organised by residential typology to provide type specific guidance to the various forms of housing possible in the City.

All controls contained in this Part must be read in conjunction with Part 2 – Design in Context, Part 5 – Environmental Management, and Part 6 – Traffic and Parking. Detailed controls that guide outcomes for sites within a heritage conservation area or containing a heritage item, refer to Part 7 – Heritage and Archaeology. For specific controls relating to residential development within an identified Growth Precinct or Strategic Centre, refer to Part 8 – Centres, Precincts, Special Character Areas and Specific Sites of this DCP.

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3.1 HOUSING DIVERSITY AND CHOICE

Housing diversity refers to the range of housing types in a development or neighbourhood. Housing diversity is intended to accommodate for people at differing stages of life, circumstance, and socio-economic status. Where diverse communities involve single and/or coupled persons, families, people with disability, older people, and other household variations, diverse housing acts to facilitate the capacity of a fulfilling life for those with changing needs and living with diverse circumstances in the community.

Housing diversity encourages a positive culture and prosperity in the local community by offering a wide range of dwelling types where space, bedrooms, and layout vary to cater for individual needs. It also promotes social sustainability and strengthens the cohesion of our diverse communities to ensure that we can continue to work towards common goals including quality of life, democracy, resilience to climate change, institutional failure, pandemics and chronic illnesses, and other stresses, no matter what challenges we face.

Recognising the importance and benefits of diverse housing development across the City of Parramatta (the City), Council is committed to achieving housing diversity through setting goals and actions in various local council strategies, such as:

- Socially Sustainable Parramatta Framework 2019
- Local Strategic Planning Statement 2036
- Local Housing Strategy 2020

Objectives

O.01 Ensure a range of housing options are available in terms of dwelling type and size.

O.02 Maximise housing choice to meet the needs of diverse household types.

O.03 Maintain equitable access to new housing by culturally and socio-economically diverse groups.

O.04 Minimise the social impacts of gentrification of existing housing areas.

O.05 Promote the design of buildings that are adaptable and flexible in design to suit the changing lifecycle housing needs of residents over time.

O.06 Minimise the future cost and disruption of adapting homes to meet changing needs.

3.1.2 DWELLING MIX

Controls

C.01 Multi dwelling housing developments containing 10 or more dwellings is to provide a mix of dwelling sizes. A minimum 20% of dwellings must have 3 or more bedrooms.

C.02 The following dwelling mix is required for residential flat buildings, shop top housing, and the residential component of mixed-use developments containing 10 or more dwellings:

a) 10% - 20% of dwellings to have 3 or more bedrooms.

b) 60% - 75% of dwellings to have 2 bedrooms.

c) 10% - 20% of dwellings to have 1 bedroom/studio.

C.03 The above requirements may be refined having regard to:

a) The location of the development in relation to public transport, public facilities, employment areas, schools, universities, and retail centres;

b) population trends; and,

c) whether the development is for the purpose of public housing, or the applicant is a community housing or non-profit organisation.

C.04 Developments containing less than 10 dwellings may vary this mix provided a range of dwelling sizes are represented.

C.05 In residential apartment buildings and mixed-use schemes, a mix of one-bedroom apartments and three-or-more-bedroom apartments are to be located on the ground level or on the podium, where accessibility to communal open space is more easily achieved for disabled, elderly people, or families with children.

C.06 The majority of all three-or-more-bedroom apartments in a residential apartment building should be provided on the ground and lower levels to support family-living in higher density housing.

3.1.3 ACCESSIBLE AND ADAPTABLE HOUSING

Controls

C.01 Multi-dwelling housing, residential flat buildings, and the residential component of mixed-use developments are to provide adaptable housing in accordance with Table 3.1.3.1 below:

Table 3.1.3.1 – Adaptable Dwelling Requirement

Total no. of dwellings in development	No. of adaptable dwellings required
Less than 10	1 dwelling
10 or more	15% of total dwellings (to be rounded up)

C.02 All adaptable housing must meet Class C adaptability under Australian Standard 4299 - Adaptable Housing.

C.03 Dwellings should be designed and configured so that adaptation does not require:

a) the moving of walls and plumbing,

b) additional water proofing, and

c) widening of door openings (i.e., these measures should be incorporated into the pre-adaptation dwelling).

C.04 Adaptable dwellings are to provide flush (recessed) sliding door tracks to all balconies and private open space.

C.05 All ground floor dwellings in buildings with no lift and all dwellings in buildings with lift access must be 'visitable' by people with a disability. Buildings must provide a continuous accessible path of travel (per Australian Standard 1428.1:2001 – Design for access and mobility) from the street and any visitor parking to and through the entrance door of affected dwellings.

3.2 GENERAL RESIDENTIAL CONTROLS

The general objectives and controls in this Section are to be applied in conjunction with the specific controls for the relevant residential development types in Sections 3.3 to 3.5 of this DCP.

3.2.1 SOLAR ACCESS AND CROSS VENTILATION

Internal solar access and cross ventilation may be best enhanced through a combination of internal planning and building separation. Where possible, primary living areas are ideally located on the northern side of dwellings. The primary living area is the principal space in the household that is used for common social activities of the occupants and is collocated with the primary private open space. In all other habitable rooms, head and sill heights of windows should be sufficient to allow sun to penetrate rooms, while the depth and height of eaves should consider how to provide adequate shade in summer.

Development must also be designed and sited to minimise the extent of shadows that it casts on:

- private and communal open space within the development,
- private and communal open space of adjoining dwellings,
- public open space such as bushland reserves and parkland,
- solar collectors of adjoining development, and
- habitable rooms both within the development and in adjoining developments.

Building elements such as operable louvres and screens, pergolas, blinds etc may be used to modify environmental conditions where required, such as maximising solar access in winter and sun shading in summer.

Objectives

O.01 Ensure daylight is provided to private open space and habitable rooms to improve amenity and energy efficiency.

O.02 Ensure sufficient volumes of fresh air circulate through buildings to create a comfortable indoor environment and to optimise natural cross ventilation.

O.03 Minimise overshadowing of the proposed development on surrounding residences and their private open space.

O.04 Preserve and improve solar access to public open space.

Controls

C.01 Dwellings within the development site and on adjoining properties are to receive a minimum 3 hours of sunlight to primary living areas between 9am and 3pm on 21 June.

C.02 Private open spaces within the development site and on adjoining properties are to receive a minimum 3 hours of sunlight to at least 50% of the private open space area between 9am and 3pm on 21 June.

C.03 Where existing development currently receives less sunlight than the above requirements, this should not be reduced.

C.04 Solar collectors, such as photovoltaic solar panels, proposed as part of a new development or existing on adjoining properties, must not be subject to overshadowing for more than 3 hours between 9am and 3pm on 21 June.

C.05 The extent of shadows must consider the range of factors that impact on solar access, including the slope of the land, aspect, existing and proposed vegetation and the height and position of existing buildings and structures, including fences. Development application submission must demonstrate these factors have been considered.

C.06 Where necessary, building setbacks may need to be increased to maximise solar access and to minimise overshadowing from adjoining buildings.

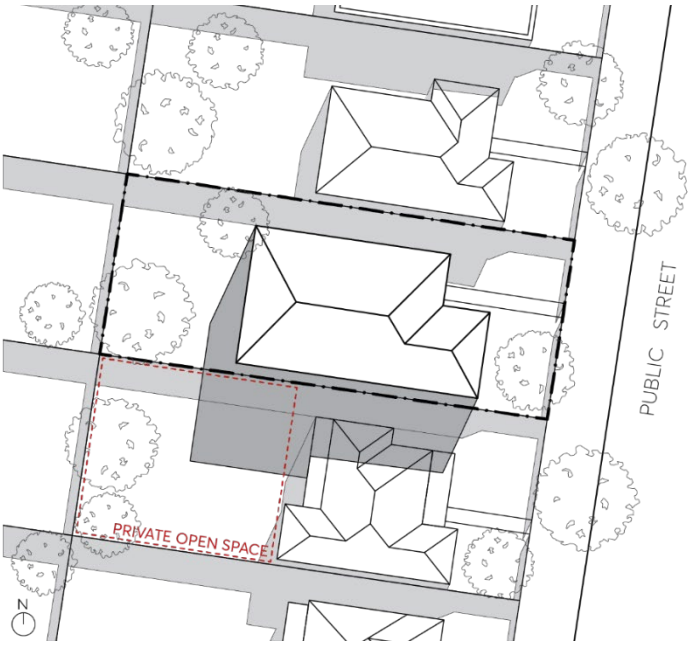


Figure 3.2.2.1 – Solar access to adjoining properties and private open space

C.07 All rooms must contain an external window to provide direct light and ventilation. Exceptions may be considered for non-habitable rooms where this cannot be achieved practicably, and mechanical ventilation can be provided.

C.08 Windows of habitable rooms facing a public street, public space or principle private open space must have a sill height no higher than 700mm above finished floor level.

C.09 The head height of a window must be no less than 300mm below the ceiling.

C.10 Skylights and high-level windows with sills of 1,500mm or greater are to be used as a secondary light source only in habitable rooms.

C.11 Translucent glazing must not be used for principal windows of habitable rooms.

C.12 A combination of standard and highlight windows may be used to achieve thermal comfort throughout the year, as per Figure 3.2.1.2.

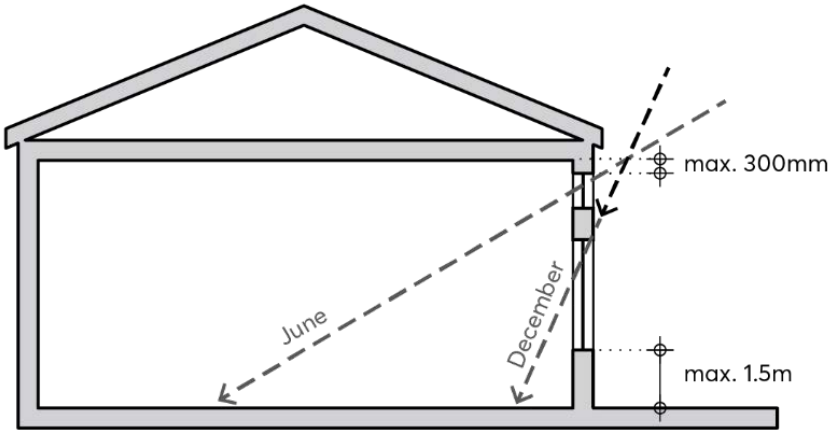


Figure 3.2.1.2 – Design to enhance solar access

C.13 Internal thermal comfort should be provided by orientating buildings to benefit from prevailing breezes.

C.14 Natural cross ventilation should be achieved by locating window openings in opposing walls and in line with each other.

C.15 Convective currents are to be facilitated through the following measures:

a) by locating small windows on the windward side and larger windows on the leeward side thereby utilising air pressure to draw air through the dwelling, or

b) by drawing cool air in at lower levels and allow warm air to escape at higher levels, for example through maisonette and two-storey dwellings.

C.16 New buildings and facades should not result in glare that causes discomfort or threatens safety of pedestrians or motorists. A reflectivity report that analyses the effects of potential glare from the proposed new development on pedestrian and motorists may be required.

Further Information

BASIX Assessment Tool

National Trajectory for Low Energy Buildings

Sustainable Buildings SEPP 2022

Apartment Design Guide

Sustainable Energy Development Authority (SEDA)

3.2.2 VISUAL AND ACOUSTIC PRIVACY

The primary method for achieving visual and acoustic privacy between dwellings should be through the location, orientation, and design of buildings. The internal layout of buildings and other elements such as balconies and decks are to be designed to minimise the overlooking of neighbouring living areas, private open spaces and adjoining sensitive uses such as schools.

Objectives

O.01 Balance the need for views and outlook with the need for privacy.

O.02 Maximise visual and acoustic privacy both within a development lot and between a development and its neighbours.

O.03 Ensure that development does not cause unreasonable overlooking of habitable rooms and principal private open spaces of dwellings.

O.04 Ensure that the siting and design of development minimises the impacts of noise transmission between properties.

Controls

C.01 Development is to utilise site planning as the primary method for achieving visual and acoustic privacy. This may be realised through such measures as orientating living spaces to rear gardens or the street, collocating similar uses between dwellings, or providing greater separation to neighbouring sites. Ancillary measures such as screening should only be utilised where privacy cannot be achieved through site planning.

C.02 The internal layout of buildings is to be designed to reduce the effects of noise transmission. For example, dwellings with common partition walls should locate noise generating rooms such as living areas adjacent the noise generating rooms of other dwellings.

C.03 Locate windows so they do not provide direct and close views into the windows of other dwellings, particularly those of living areas.

C.04 Development is to contribute to minimising the impact of any local noise generating sources within a site's vicinity such as traffic, rail, or industry.

C.05 Windows are to be located and designed to reduce the transmission of noise.

C.06 Appropriate building materials should be used to provide acoustic privacy and double glazing utilised where required due to adjacent noise generating sources.

C.07 Increase visual and acoustic privacy through the building design elements such as recessed balconies and/or vertical fins between adjacent balconies, oblique windows, fencing, vegetation, louvres and pergolas which limit overlooking of lower dwellings, private open space, and adjoining school yards.

C.08 Landscaping should be used along site boundaries to obscure sight lines and improve visual privacy.

C.09 Balconies above ground level are to face the street, the rear, or another element of the public domain such as a park. Balconies are to be designed to minimise their orientation to side boundaries.

3.2.3 ATTIC DESIGN

Objectives

O.01 Reduce the bulk and scale of roof forms which include attic spaces.

O.02 Allow good light and ventilation.

O.03 Ensure the inclusion of any attic space does not create out of character roof forms.

Controls

C.01 Attics are to be no greater than 30m^2 in floor area.

C.02 Roofs (containing attics or otherwise) are not to exceed 32 degrees in pitch.

C.03 Attics are to be designed to fit within the building and are not to increase the bulk and height of the roof.

C.04 Attics are to be cross ventilated using opposing windows, a whirlybird or similar. These should be positioned to maximize cross ventilation.

C.05 Attics are to have a minimum floor to ceiling height of 2.4 metres.

C.06 Attic spaces are to have a minimum wall height of 1.5 metres at the edge of the room.

C.07 Attics are to be centrally located with setbacks from the external facades of the dwelling.

C.08 Dormer windows may be included in attics, provided they are no higher than the height of the main roof of the building, no greater than 1.5 metres in width and are not to incorporate access or a balcony.

C.09 A dormer window must be set back at least 500mm from the edge of the lower-level external wall face.

C.10 Dormer windows should have a sill height no greater than 900mm to allow for adequate light and cross ventilation.

C.11 Attic windows should face the front and rear boundaries of the site, or an element of the public domain such as a park.

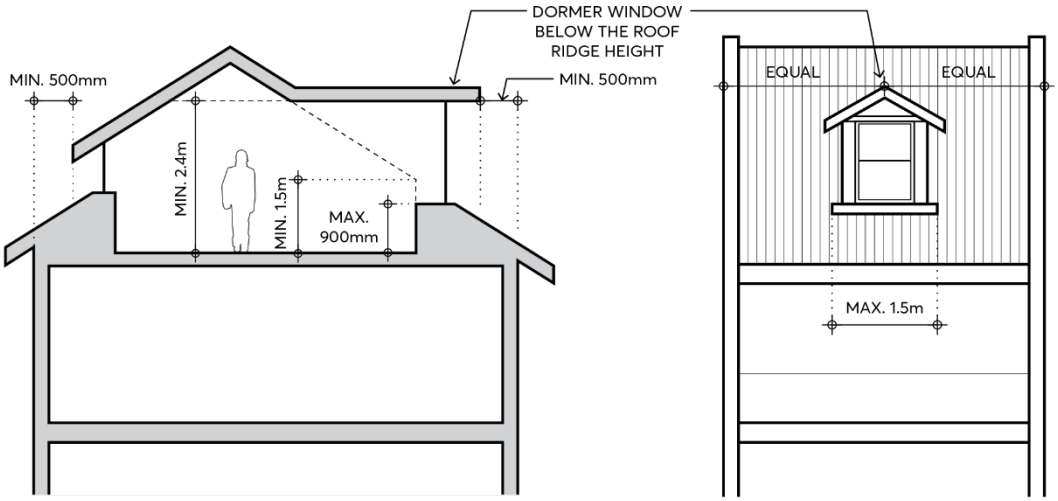


Figure 3.2.3.1 – Attic design

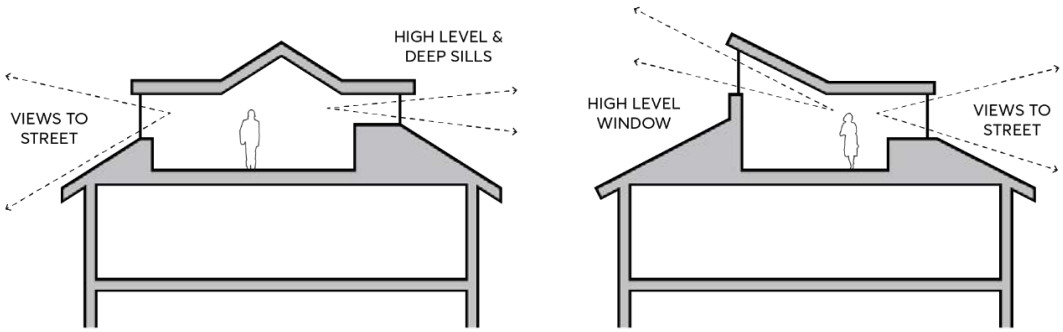


Figure 3.2.3.2 – Attic windows designed to enhance privacy and cross ventilation

3.2.4 SWIMMING POOLS

Controls

C.01 Ancillary development comprising a swimming pool for private use must be located on a lot behind the setback area from a primary road, or in the rear yard.

C.02 The swimming pool water line must have a setback of at least 1 metre from a side or rear boundary.

C.03 Decking around a swimming pool must not be more than 600mm above existing ground level.

C.04 Coping around a swimming pool must not be more than 1.4 metres above existing ground level, or 300mm wide if the coping is more than 600mm above existing ground level.

C.05 Water from a swimming pool must be discharged in accordance with an approval under the *Local Government Act 1993* if the lot is not connected to a sewer main.

C.06 A child-resistant barrier must be constructed or installed in accordance with the requirements of the *Swimming Pools Act 1992*.

3.2.5 OUTBUILDINGS

Controls

C.01 Outbuildings are permitted to a maximum height of 1 storey and 4.5 metres.

C.02 Outbuildings must not be constructed forward of the main building frontage.

C.03 Outbuildings must be setback a minimum of 900mm from side boundaries. A greater setback may be required to preserve existing established trees or vegetation.

C.04 Outbuildings must provide a minimum 3 metre rear setback. A greater setback may be required to preserve existing established trees or vegetation.

C.05 An outbuilding with a maximum floor area of 25m^2 may be permitted within 900mm of the rear boundary (e.g., garden shed, garage, pergola), provided there is no loss of established trees or vegetation.

C.06 The construction of outbuildings must not reduce the deep soil, landscaped, or private open space area of the lot to less than the minimum required for the associated residential development type on that site.

C.07 Outbuildings must meet the design objectives of the relevant development type established on the subject lot.

3.3 DWELLING HOUSES, SECONDARY DWELLINGS AND DUAL OCCUPANCIES

Low-scale, low-density residential development is the prevalent building type in the City of Parramatta (the City). This landscape is an outcome of the historical subdivision of pastoral lands into reasonably typical 600m² (quarter-acre) suburban lots. A highly varied topographical context in the City led to a collection of distinctive suburban areas that are defined by the City's ridges and valleys. The character of each of these areas is observed through their consistent architectural style, street and block layout, pattern of subdivision, building grain and consistent building heights.

The primary objective of low-density residential development is to provide for the housing needs of the community within a low-scale and landscape setting. New development, alterations and additions to existing houses should enhance this established character.

This Section provides guidance to encourage new development that is compatible with its surrounding context and minimises the impact on the environmental amenity afforded to a low-density environment.

3.3.1 KEY DEVELOPMENT STANDARDS FOR DWELLING HOUSES

All controls contained in Section 3.3.1 – Key Development Standards for Dwelling Houses must be read in conjunction with Part 3 – Residential Development, Section 3.2 – General Residential Controls, Part 2 – Design in Context, Part 5 – Environmental Management and Part 6 – Traffic and Transport of this DCP.

3.3.1.1 MINIMUM SITE FRONTAGE

Objectives

O.01 Ensure sites are of sufficient width to achieve:

a) the necessary standard of amenity in relation to privacy, solar access, and private open space,

b) a sense of street address, and

c) safe and efficient pedestrian and vehicular access.

Controls

C.01 For any new subdivisions, a development lot must have a minimum site frontage width of 15 metres.

3.3.1.2 PRELIMINARY BUILDING ENVELOPE

Objectives

O.01 Ensure development contributes to a visual cohesiveness along the streetscape through an identifiable uniformity in bulk, scale, setbacks, and height.

O.02 Provide adequate separation between buildings and protect adjoining buildings from overlooking and loss of amenity.

O.03 Provide space in residential areas for landscape amenity that contributes to both the public domain and private landscaping.

O.04 Ensure that built form setbacks enable a healthy environment for onsite large canopy tree planting and street trees.

Controls

Building Height

C.01 The maximum building height is to be consistent with the *Parramatta LEP 2023* Height of Buildings Map.

C.02 Notwithstanding the above, dwelling houses shall be a maximum of 2-storeys, with attic rooms permitted (see Section 3.2.3 – Attic Design of this DCP).

C.03 Any part of a basement or sub-floor area that projects greater than 1m above natural ground level comprises a storey.

C.04 The ground floor level (finished) of any building must not exceed 500mm above or below natural ground level.

Setbacks

C.05 Buildings must be setback a minimum of 6 metres and be consistent with the prevailing setback along the street, as per Figure 3.3.1.2.1.

C.06 On corner lots, the secondary street setback must be a minimum of 3 metres, as per Figure 3.3.1.2.1.

C.07 Notwithstanding the above, the minimum setback to state and regional roads is 10 metres.

C.08 Buildings must be setback a minimum of 900mm from side boundaries.

C.09 The maximum length of wall along a side boundary is 10 metres. A minimum recess (measured from the face of the external wall) of 1.5 metres (depth) by 2 metres (length) is required to all storeys after 10 metres.

C.10 A rear setback equal to 30% of the site length, as measured perpendicular to the centre of the rear boundary, must be provided as per Figure 3.3.1.2.1.

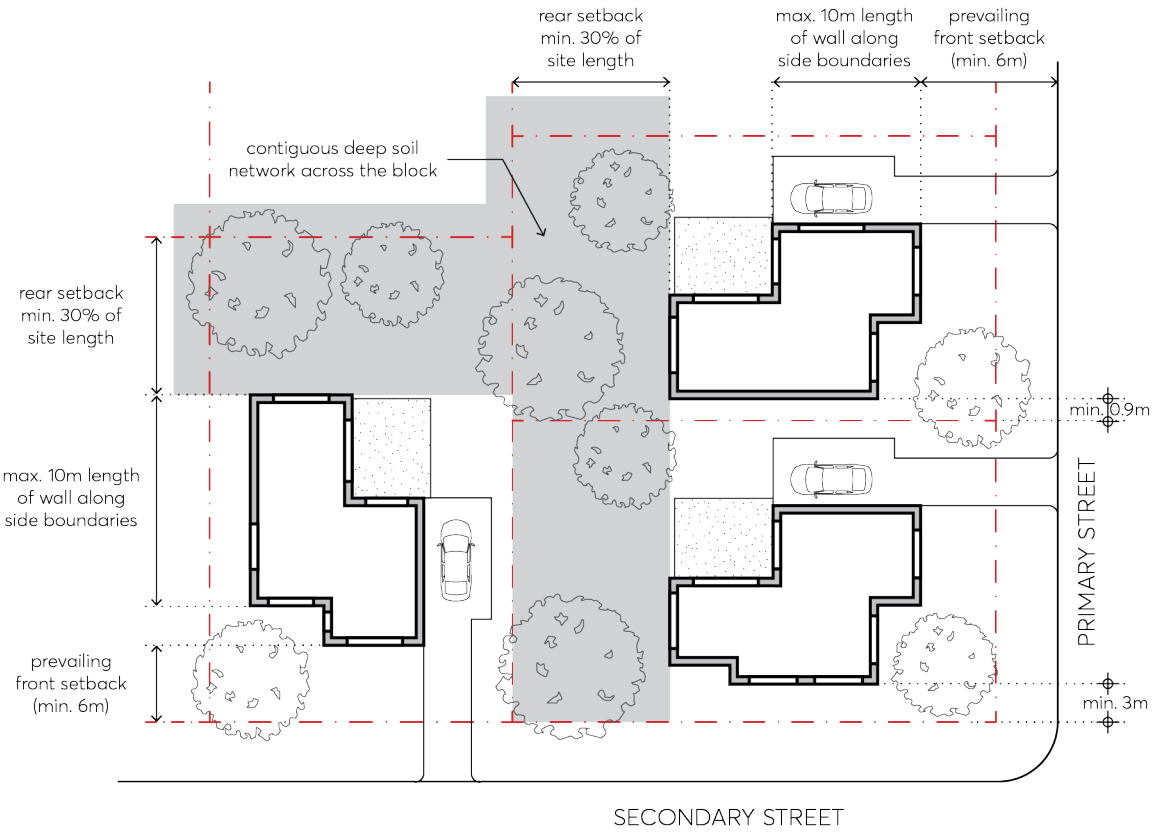


Figure 3.3.1.2.1 – Key setback requirements for Dwelling Houses

3.3.1.3 STREETSCAPE AND BUILDING ADDRESS

Objectives

O.01 Ensure the appearance of buildings complement and enhance neighbourhood and streetscape character.

O.02 Deliver high-quality development with a clear sense of address from the street and visual prominence of dwelling entries in the front façade.

O.03 Improve casual surveillance by locating habitable rooms and dwelling entries along the street frontage.

O.04 Integrate new development into the surrounding context by minimising proposed bulk and scale through consistent articulation, materials, and setbacks.

Controls

C.01 Dwellings are to be orientated towards the street. Dwellings on corner lots are to address both streets with windows and/or doors.

C.02 Habitable rooms are to be located to overlook the street or other public spaces.

C.03 Features such as long, blank walls which restrict opportunities for passive surveillance of the street or internal pedestrian pathways are to be avoided.

3.3.1.4 OPEN SPACE AND LANDSCAPE

Objectives

O.01 Ensure private open space provides residents with quality usable private outdoor living areas for recreational and outdoor activities.

O.02 Ensure private open space is designed to maximise solar access and be well integrated with living areas.

O.03 Maintain privacy to the occupants of adjacent dwellings and within the proposed development.

O.04 Provide quality private open space in terms of its outlook, orientation, relationship to the dwelling, size and shape and its enclosure and landscape.

Controls

C.01 A minimum 30% of the total site area is to be provided as deep soil, with a minimum dimension of 4 metres x 4 metres, where:

a) at least 50% of the deep soil is located at the rear of the site, and

b) at least 15% of the deep soil is located at the front of the site.

C.02 A minimum 40% of the total site area, including deep soil zone, is to be provided as landscaping with a minimum dimension of 2 metres x 2 metres.

C.03 A minimum 100m^2 of private open space must be provided for each dwelling. This space is to be contiguous, provided at ground level, located to the rear of each dwelling, and have a minimum dimension of 6 metres.

C.04 Private open space must be directly accessible from the living area of the dwelling and capable of serving as an extension of the dwelling for entertainment and recreation.

C.05 Open space within the front setback is not included in the minimum private open space area calculation.

C.06 Rear balconies or decks are only permitted where they are set back a minimum of 12 metres from the rear boundary/fence and minimise overlooking of adjoining properties.

C.07 Trees with a minimum mature height of 13 metres must be planted per parent lot at the following rates:

a) A minimum of 2 trees for sites less than 600m^2.

b) A minimum of 4 trees for sites 600 – 1,500m^2.

c) A minimum of 5 trees for sites greater than 1,500m^2.

Where it is demonstrated that a 13m tree cannot be planted, a smaller canopy tree may be considered.

C.08 At least one tree must be planted within the front setback zone and all trees must be planted a minimum of 3 metres from the building foundation.

3.3.1.5 PARKING DESIGN AND VEHICULAR ACCESS

Refer to Part 6 – Traffic and Transport of this DCP for parking rates and requirements.

Objectives

O.01 Provide adequate off-street parking for residents.

O.02 Ensure that the location and design of driveways and garages are efficient, safe and integrated into the design of the development to minimise their visual impact.

Controls

C.01 Garages and carports are to have a maximum internal width of 6.3 metres, and garage doors are to take up no more than 50% of the width of the street elevation.

C.02 At grade garages and carports are to be setback a minimum 5.5 metres from the front boundary and located a minimum of 300mm behind the front wall of the building.

C.03 Garages and carports provided at the front of a property are to integrate with the design of the dwelling so that they are less dominant in the streetscape.

C.04 Where the prevailing pattern of development locates garages and carports to the rear of the property, new development must also locate garages and carports at the rear, provided it does not compromise deep soil or landscaping requirements.

C.05 Where there is no rear lane and no capacity to access the rear yard by car from a street, a carport may be developed forward of the building line provided the visual impact of such structures is minimised. This must be achieved by responding to the prevailing setback condition of the street, designing carports to integrate with the design of the existing dwelling (such as matching roof pitch and materials), and responding to the existing streetscape character.

C.06 Tandem parking may be provided for a maximum of 2 car parking spaces where they are used by the same dwelling.

C.07 Driveways may be required to incorporate a dedicated turning area to allow the 85% Design Car Turning Path, where:

a) there is poor sight distance from the driveway to pedestrian or vehicular traffic,

b) the accessway fronts a main road or highly pedestrianised area, or

c) where vehicles would otherwise have to reverse more than 30 metres.

C.08 Turning paths must be designed to Council's satisfaction and not compromise deep soil or landscaping requirements.

3.3.1.6 INTERNAL AMENITY

Objectives

O.01 Provide habitable rooms that are of a height and size that is functional and provides a high standard of amenity for occupants.

Controls

C.01 The minimum floor to ceiling height is 2.7 metres on all storeys, excluding attics. Refer to Section 3.2.3 – Attic Design of this DCP for detailed attic controls.

C.02 Master bedrooms are to have a minimum area of $10m^2$, and all other bedrooms are to be a minimum of $9m^2$ (in all cases the minimum area must exclude any wardrobe space).

C.03 Living rooms or combined living-dining spaces are to have a minimum internal width of 5 metres.

C.04 Refer to Section 3.2.1 of this DCP for solar access and cross ventilation requirements, and Section 3.2.2 of this DCP for visual and acoustic privacy requirements.

3.3.2 KEY DEVELOPMENT STANDARDS FOR DUAL OCCUPANCIES

All controls in Section 3.3.2 – Key Development Standards for Dual Occupancies must be read in conjunction with Part 3 – Residential Development, Section 3.2 – General Residential Controls, Part 2 – Design in Context, Part 5 – Environmental Management, and Part 6 – Traffic and Transport of this DCP.

3.3.2.1 MINIMUM SITE FRONTAGE AND SITE AREA

Objectives

O.01 Ensure sites are of sufficient width to achieve:

a) the necessary standard of amenity in relation to privacy, solar access, landscaping and private open space,

b) a sense of street address to both dwellings, and

c) safe and efficient pedestrian and vehicular access.

Controls

C.01 A development lot must have a minimum site frontage width of 15 metres, as per the *Parramatta LEP 2023*, as measured along the front boundary line.

C.02 For sites located within cul-de-sacs, the minimum site frontage width should be measured in a straight line from corner to corner along the front boundary line, as per Figure 3.3.2.1.1.

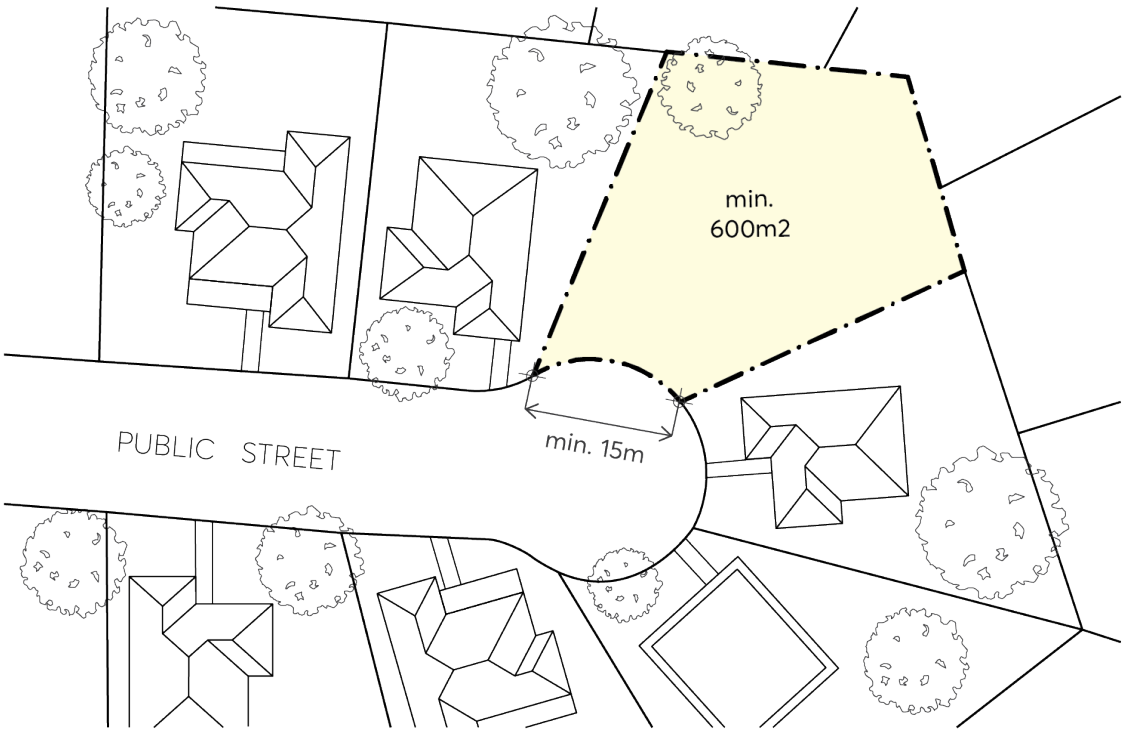


Figure 3.3.2.1.1 – Site frontage requirements for dual occupancies proposed within cul-de-sacs

C.03 A development lot must be a minimum of 600m², as per the *Parramatta LEP 2023*. The area of any access corridor, right of carriageway, battle-axe handle or the like will be excluded for the purpose of lot area calculations, as per Figure 3.3.2.1.2.

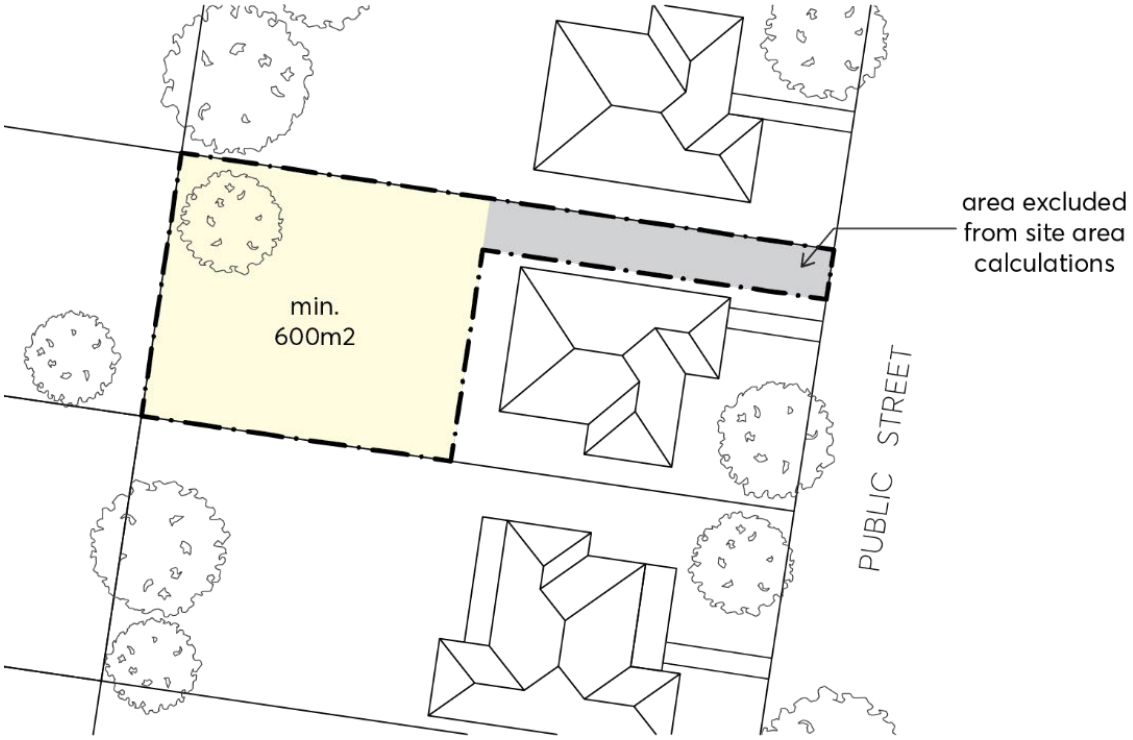


Figure 3.3.2.1.2 - Minimum site area for battle-axe lots

3.3.2.2 PRELIMINARY BUILDING ENVELOPE

Objectives

O.01 Ensure development contributes to a visual cohesiveness along the streetscape through an identifiable uniformity in bulk, scale, setbacks, and height.

O.02 Provide adequate separation between buildings and protect adjoining buildings from overlooking and loss of amenity.

O.03 Provide space in residential areas for landscape amenity that also contributes to the public domain.

O.04 Ensure that built form setbacks enable a healthy environment for onsite large canopy tree planting and street trees.

Controls

Building Height

C.01 The maximum building height is to be consistent with the *Parramatta LEP 2023* Height of Buildings Map.

C.02 Notwithstanding the above, dual occupancies shall be a maximum of 2 storeys, with attic rooms permitted.

C.03 Any part of a basement or sub-floor area that projects greater than 1 metre above natural ground level comprises a storey.

C.04 The ground floor level (finished) of any building must not exceed 500mm above or below natural ground level.

Street Setback

C.05 Buildings must be set back a minimum of 6 metres from the street boundary and be consistent with the prevailing setback along the street, as per Figure 3.3.2.2.1.

C.06 At the street, the upper level of any dual occupancy must be set back a further 2 metres (minimum) from the building line, excluding development on corner lots.

C.07 On corner lots, the secondary street setback must also be a minimum of 3 metres.

C.08 Notwithstanding the above, the minimum setback to state and regional roads is 10 metres.

Side Setbacks

C.09 Buildings must be set back a minimum of 1.5 metres from side boundaries.

C.10 Notwithstanding the above, buildings are to occupy a maximum of 80% of the width of the lot, as measured from the building line, as per Figure 3.3.2.2.1.

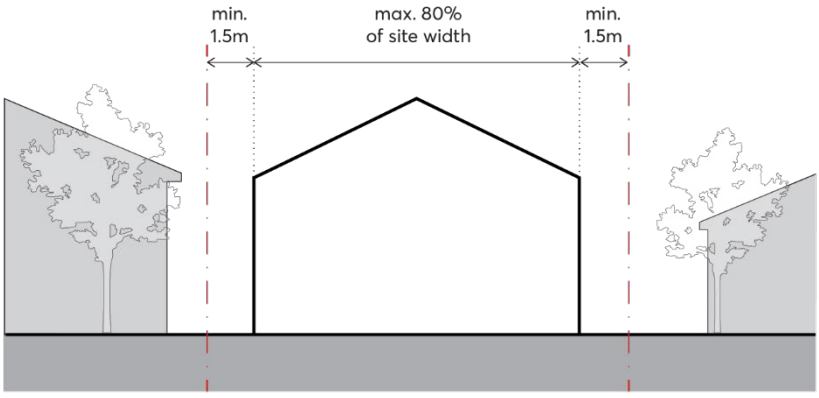


Figure 3.3.2.2.1 – Maximum building width of 80% of the site width

C.11 Additional upper-level setbacks to side boundaries are discouraged. Where a greater setback is required to improve privacy or solar access, an increased whole of building setback must be applied.

C.12 On corner lots, the separation between detached dual occupancy dwellings must be a minimum 3 metres.

C.13 The maximum length of wall along side boundaries is 10 metres. A minimum recess (measured from the face of the external wall) of 1.5 metres (depth) by 2 metres (length) is required to all storeys after 10 metres, as per Figure 3.3.2.2.2.

Rear Setback

C.14 A rear setback equal to 30% of the site length or 10 metres, whichever is greater, must be provided, as per Figure 3.3.2.2.2. The rear setback is to be measured perpendicular to the centre of the rear boundary.

C.15 For corner sites, rear setbacks must be a minimum of 6 metres, as per Figure 3.3.2.2.3. Rear setbacks on corner sites are to be measured from the boundary parallel to the primary living spaces to accommodate the required private open space.

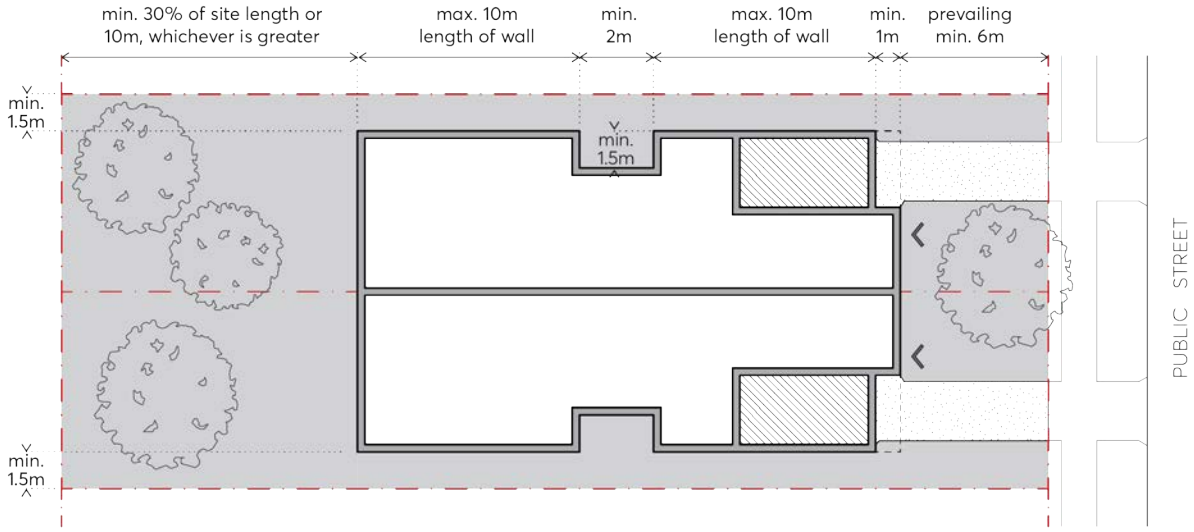


Figure 3.3.2.2.2 – Dual occupancy site setbacks

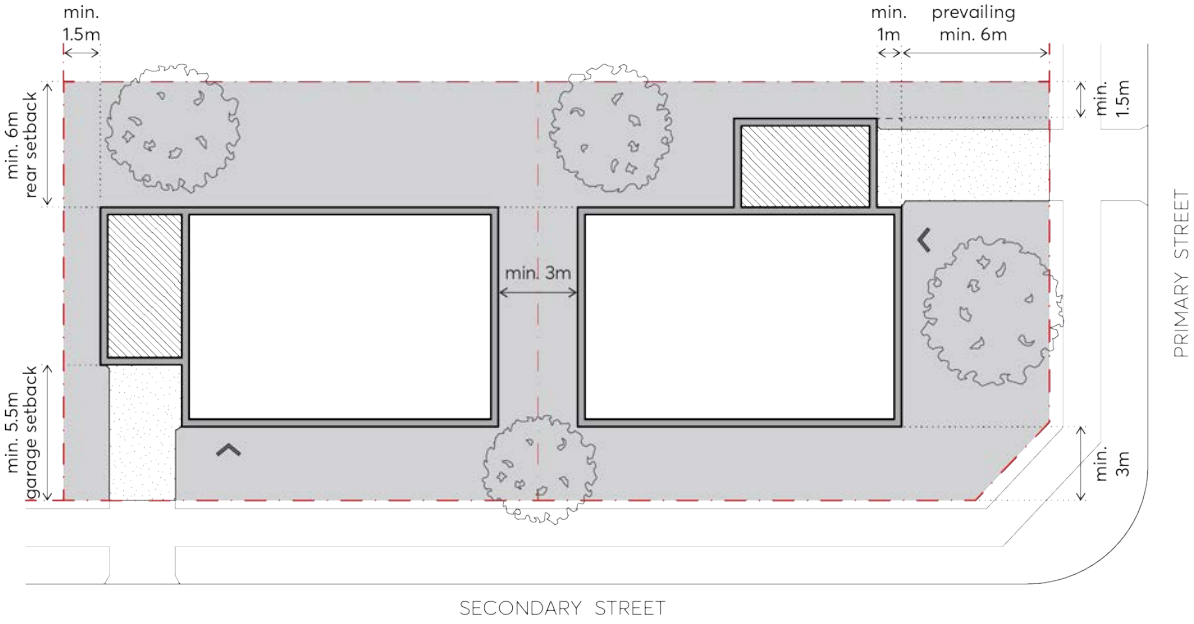


Figure 3.3.2.2.3 – Corner lot - detached dual occupancy site setbacks

3.3.2.3 STREETSCAPE AND BUILDING ADDRESS

Objectives

O.01 Ensure the appearance of buildings complement and enhance neighbourhood and streetscape character.

O.02 Integrate new development into the surrounding context by minimising proposed bulk and scale through consistent articulation, materials, and setbacks.

O.03 Deliver high-quality development with a clear sense of address from the street and visual prominence of dwelling entries in the front façade.

O.04 Improve casual surveillance by locating habitable rooms and dwelling entries along the street frontage.

O.05 Provide a sense of identity, whilst maintaining compatibility between the dwellings.

Controls

C.01 Both dwellings must be located at ground level and be orientated towards the street.

C.02 Dwellings must provide direct access from the street and any stairs or other level changes must be contained within the building.

C.03 On corner lots, at least one dwelling is to face the primary street and one the secondary street, unless two dwellings facing the primary street frontage results in better outcomes for landscaping, deep soil, and private open space.

C.04 Where the side of a dwelling is fronting a secondary street, this façade should be articulated with windows and/or doors to address the street.

C.05 Features such as long, blank walls which restrict opportunities for casual surveillance of the street are to be avoided.

C.06 Dwellings are to be designed so that habitable rooms are orientated to overlook the street or other public spaces.

C.07 The ground floor level (finished) and/or entry level of any dwelling should not exceed 500mm above or below natural ground level. This may require buildings to utilise split slabs where necessary.

C.08 On sloping sites, any semi-undergrounded basements structures must provide level vehicular access from the street and must not result in a three-storey appearance from the street.

C.09 Wall heights must not exceed 7.5 metres, as measured from natural ground level, as per Figure 3.3.2.3.1. On sloping sites, this may require stepping of building form or setting back upper levels.

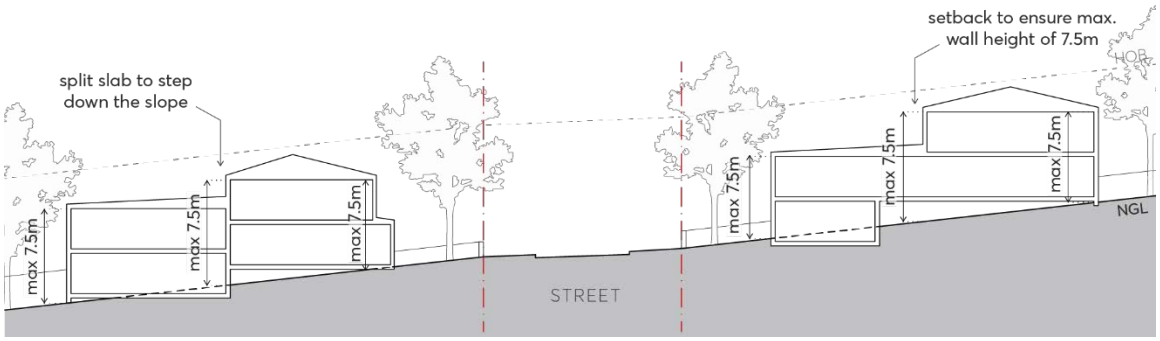


Figure 3.3.2.3.1 – Dual Occupancy - Sloping sites and maximum wall height

C.10 Dual occupancies should not be mirrored in their design.

C.11 Porches or porticos should be considered to define the front entry of dwellings, as per Figure 3.3.2.6.1. Front porches are to have a minimum dimension of 2 metres by 2 metres, be limited to a single storey in height, and must not encroach on the front setback.

C.12 Balconies are permitted within the upper-level setback fronting the street. Balustrades on upper-level balconies should be a minimum 50% transparent to break down the visual bulk of the façade.

C.13 See Part 2 – Design and Place, Section 2.6 – Fences of this DCP for fence requirements within the front setback.

3.3.2.4 OPEN SPACE AND LANDSCAPE

Objectives

O.01 Enhance the existing streetscape and promote a scale and density of planting that softens the visual impact of buildings.

O.02 Ensure that private open space is designed to provide residents with quality usable private outdoor living areas for recreational and outdoor activities.

O.03 Increase tree canopy along the street.

Controls

C.01 A minimum 30% of the total site area is to be provided as deep soil, with a minimum dimension of 4 metres x 4 metres, of which:

a) at least 50% of the deep soil is located at the rear of the site, and

b) at least 20% of the deep soil is located at the front of the site.

C.02 A minimum 40% of the total site area, including deep soil zone, is to be provided as landscaping with a minimum dimension of 2 metres x 2 metres.

C.03 A minimum 100m^2 of private open space must be provided for each dwelling. Private open space must be contiguous, at ground level, located to the rear of each dwelling, allow direct access from internal living spaces, and have a minimum dimension of 6 metres.

C.04 Open space within the street setback is not included in the minimum private open space area calculation.

C.05 Balconies are to have a minimum dimension of 2 metres.

C.06 Rear balconies are not permitted on dual occupancy development at upper floor levels.

C.07 Trees with a minimum mature height of 13 metres must be planted per parent lot at the following rates:

a) A minimum of 2 trees for sites less than 600m^2.

b) A minimum of 4 trees for sites 600 – 1,500m^2.

c) A minimum of 5 trees for sites greater than 1,500m^2.

Where it is demonstrated that a 13m tree cannot be planted, a smaller canopy tree may be considered.

C.08 At least one tree must be planted within the front setback zone and all trees must be planted a minimum of 3 metres from the building foundation.

3.3.2.5 PARKING DESIGN AND VEHICULAR ACCESS

Refer to Part 6 – Traffic and Transport of this DCP for parking rates and requirements.

Objectives

O.01 Provide adequate off-street parking for residents.

O.02 Ensure that the location and design of driveways and garages are efficient, safe, and integrated into the design of the development to minimise their visual impact.

O.03 Minimise the environmental impact of garage structures and ensure carparking does not become a visually dominate element on the site or in the streetscape.

Controls

C.01 Garages are to have a maximum internal width of 6.3 metres, and garage doors are to take up no more than 50% of the width of the street elevation.

C.02 Garages or carports are to be provided at grade and be located a minimum of 1 metre behind the front wall of the building.

C.03 Garages located on the secondary street frontage of corner lots must be set back a minimum of 1 metre behind the front wall of the building and a minimum of 5.5 metres from the boundary line.

C.04 Driveways must be set back a minimum of 1 metre from side boundaries to allow for a landscape buffer.

C.05 Driveways are to be designed to minimise the amount of hard surface in the front setback. Driveways may be utilised as the primary pedestrian pathway to dwellings where it assists in increasing the potential soft landscape area.

C.06 Split driveways are preferred and are to have a maximum width of 3 metres per driveway. A generous shared landscape area is to be provided between driveways to support tree planting. Where possible, adequate space for on-street parking should be provided between split driveways.

C.07 Where split driveways are not possible due to constrained site width or location of existing mature trees, a shared driveway may be provided with a maximum width of 6 metres and maximum 4.5 metre wide crossover at the kerb.

C.08 Shared driveways may be supported on corner sites along the longer of the two street frontages. Garages in this location may be provided as one storey elements to reduce the bulk and scale along this frontage.

C.09 Shared driveways should be of a consistent level. Where a slope in the site results in a noticeable level change between the two garages, a split driveway should be employed.

C.10 Retaining walls and fences are not permitted along the centre of shared driveways.

C.11 Where a turning bay or hard stand parking space is proposed, it is to be constructed of semi-permeable material and be no greater than 2.4 metres by 5.4 metres.

C.12 Tandem parking may be provided for a maximum of 2 car parking spaces where they used by the same dwelling.

C.13 Driveways may be required to incorporate a dedicated turning area to allow the 85% Design Car Turning Path, where:

a) there is poor sight distance from the driveway to pedestrian or vehicular traffic,

b) the accessway front a main road or highly pedestrianised area, or

c) where vehicles would otherwise have to reverse more than 30 metres.

Turning paths must be designed to Council satisfaction and not compromise deep soil or landscaping requirements.

3.3.2.6 INTERNAL AMENITY

Objectives

O.01 Provide habitable rooms that are of a height and size that is functional and provides a high standard of amenity for occupants.

Controls

C.01 The minimum floor to ceiling height is 2.7 metres on all storeys, excluding attics. Refer to Section 3.2.3 – Attic Design of this DCP for detailed attic controls.

C.02 Master bedrooms are to have a minimum area of $10m^2$, and all other bedrooms are to be a minimum of $9m^2$ (excluding wardrobe space).

C.03 Living rooms or combined living-dining spaces are to have a minimum internal width of 5 metres.

C.04 Refer to Section 3.2.1 of this DCP for solar access and cross ventilation requirements, and Section 3.2.2 of this DCP for visual and acoustic privacy requirements.

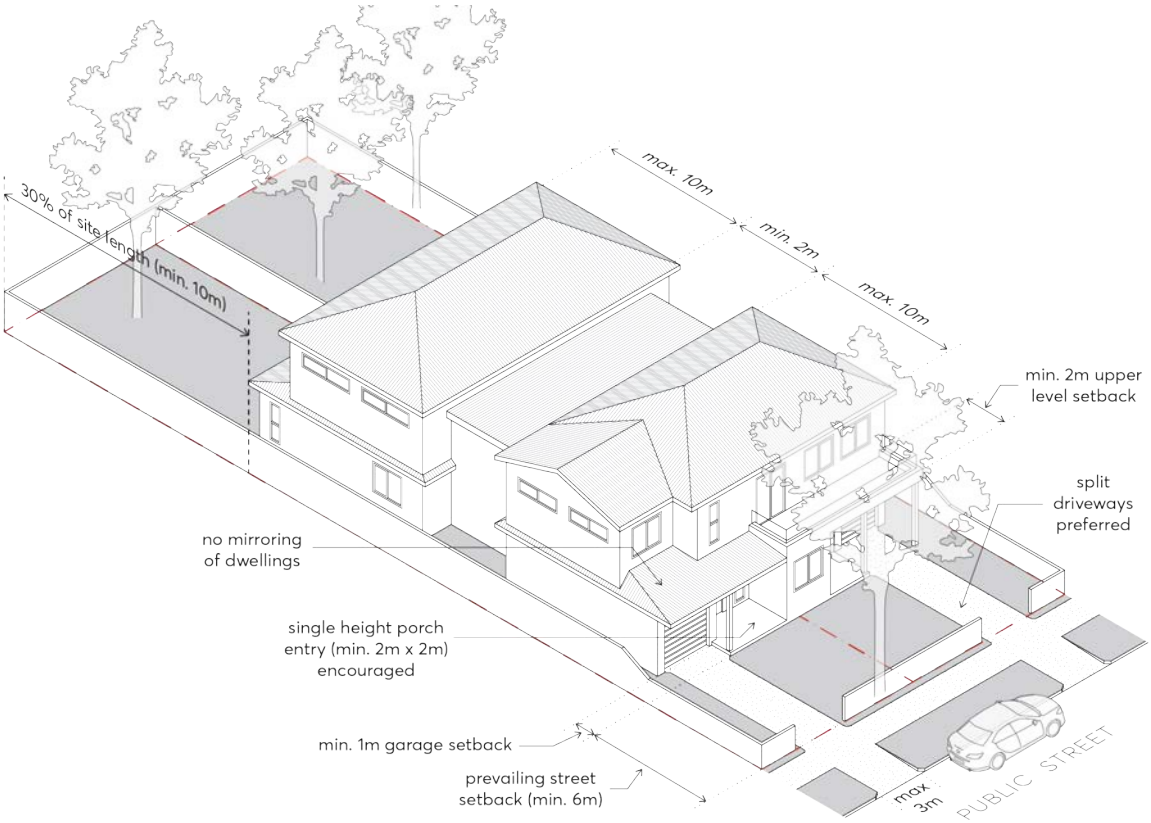


Figure 3.3.2.6.1 – Dual Occupancy Development

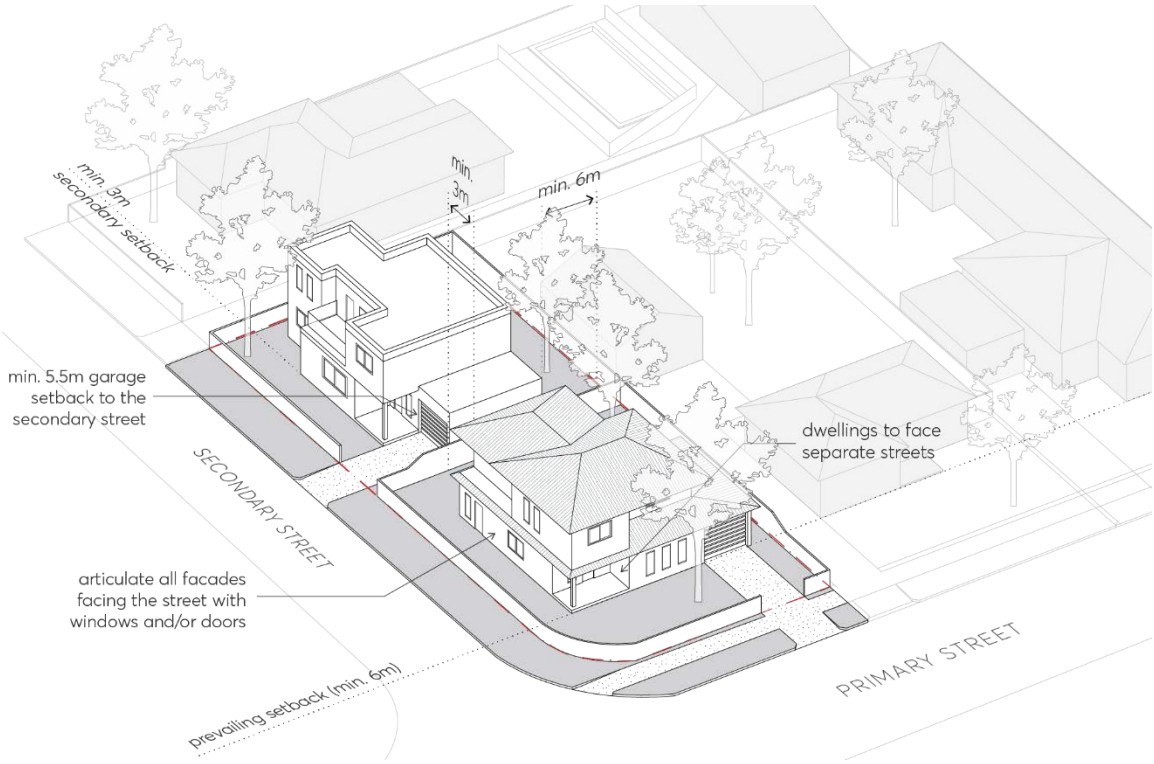


Figure 3.3.2.6.2 – Dual Occupancy - Corner Lot

3.3.3 KEY DEVELOPMENT STANDARDS FOR SECONDARY DWELLINGS

All controls in Section 3.3.3 – Key Development Standards for Secondary Dwellings must be read in conjunction with Part 3 – Residential Development, Section 3.2 – General Residential Controls, Part 2 – Design in Context, Part 5 – Environmental Management and Part 6 – Traffic and Transport of this DCP.

3.3.3.1 MINIMUM SITE FRONTAGE AND LOT SIZE

Objectives

O.01 Ensure sites are of sufficient width to achieve:

a) the necessary standard of amenity in relation to privacy, solar access, landscaping and private open space,

b) a sense of street address to both dwellings, and

c) safe and efficient pedestrian and vehicular access.

Controls

C.01 The minimum lot size for any secondary dwellings is 450m^2.

C.02 No more than one secondary dwelling is permitted on a single allotment.

3.3.3.2 PRELIMINARY BUILDING ENVELOPE

Objectives

O.01 Ensure development contributes to a visual cohesiveness along the streetscape through an identifiable uniformity in bulk, scale, setbacks, and height.

O.02 Provide adequate separation between buildings and protect adjoining buildings from overlooking and loss of amenity.

O.03 Provide space in residential areas for landscape amenity that also contributes to the public domain.

O.04 Ensure that built form setbacks enable a healthy environment for large canopy tree planting onsite and adjacent street trees.

Controls

Building Height

C.01 The maximum building height is to be consistent with the *Parramatta LEP 2023* Height of Buildings Map.

C.02 Notwithstanding the above, secondary dwellings shall be a maximum of 2-storeys.

C.03 A lesser height may be required in Heritage Conservation Areas or on lots containing a heritage item.

C.04 The minimum floor to ceiling height is 2.7 metres on all storeys, excluding attics. Refer to Section 3.2.3 – Attic Design of this DCP for detailed attic controls.

C.05 Attics may only be considered where they are within the maximum height in storeys. No third storey attic spaces are permitted.

C.06 The maximum floor to ceiling height is 3 metres on all storeys.

C.07 The ground floor level (finished) of any building must not exceed 500mm above or below natural ground level.

Setbacks

C.08 Secondary dwellings must not be forward of the main building frontage, unless integrated into the design of the principal dwelling and setback in accordance with provisions for dwelling houses as specified in Section 3.3 of this DCP.

C.09 On corner lots, the secondary street setback must setback a minimum of 3 metres.

C.10 The minimum setback to a rear laneway is 1.5 metres.

C.11 Secondary dwellings must be setback a minimum of 900mm from side boundaries for buildings up to 1 storey in height, or a minimum of 2 metres from side boundaries for buildings up to 2 storeys in height.

C.12 Secondary dwellings must provide a minimum 3 metre rear setback for buildings up to 1 storey in height, or a minimum 6 metre rear setback for buildings up to 2 storeys in height.

3.3.3.3 STREETSCAPE AND BUILDING ADDRESS

Objectives

O.01 Integrate new development into the surrounding context by minimising proposed bulk and scale through the use of articulation, materials and setbacks.

O.02 Ensure secondary dwellings maintain a clear sense of address from the public domain.

O.03 Improve casual surveillance by locating habitable rooms and dwelling entries along the street frontage.

Controls

C.01 Where secondary dwellings are integrated into the design of the principal dwelling and orientated towards the street, buildings must be in accordance with the streetscape and building design provisions for dwelling houses specified in Section 3.3.1 of this DCP.

C.02 Secondary dwellings that are attached to the principal dwelling are to be integrate with the design, colour and materials of the principal dwelling.

C.03 Secondary dwellings are to be of a construction that is durable and robust and meet the standards specified under the Building Code of Australia. Where the secondary dwelling is

proposed as the conversion of an existing structure, applicants should seek expert technical advice to ensure compliance with the relevant standards.

C.04 The appearance of a secondary dwelling is not to detract from the visual amenity of the development on the site and surrounding locality.

3.3.3.4 OPEN SPACE AND LANDSCAPE

Objectives

O.01 Maintain a reasonable level of amenity to the principal dwelling, the site and surrounding properties.

O.02 Ensure that private open space is designed to provide residents with quality usable private outdoor living areas for recreational and outdoor activities.

O.03 Increase tree canopy across the block and along the street.

Controls

C.01 A minimum 12m^2 of private open space must be associated with a secondary dwelling. This may be provided as a patio or balcony.

C.02 Secondary dwellings may share the private open space of the principal dwelling provided:

a) Secondary dwellings do not reduce the deep soil or landscaped area of the lot to less than the minimum required for dwelling houses as specified in Section 3.3.1 of this DCP.

b) Secondary dwellings do not reduce the private open space area on the lot to less than the minimum required for the principal dwelling as specified in Section 3.3.1 of this DCP.

3.4 MULTI-DWELLING HOUSING

Multi-dwelling housing in City of Parramatta (the City) typically takes the form of townhouses, terraces, and manor homes. The primary objective of multi-dwelling housing is to provide for a greater variety of housing types to address the housing needs of the community within a low-rise, medium density setting. Medium density residential development should be located to increase housing accessibility, affordability, diversity, and choice.

As multi-dwelling housing is typically located in areas transitioning from lower density detached housing types in the City, it is important to consider the characteristics of the site through a context analysis (see Part 2 – Design in Context of this DCP) to ensure new development enhances the streetscape character of the locality. It is acknowledged multi-dwelling housing types will have a greater impact on the existing character of an area. While new development should complement the existing pattern of development found in the street, multi-dwelling housing types need to also establish and respond to a future desired character that is embedded in a detailed understanding of a site's wider context.

Objectives

O.01 Provide a variety of housing types to address the housing needs of the community within a medium density residential environment.

O.02 Enable proximity to community facilities or services to meet the day to day needs of residents.

O.03 Provide opportunities for people to carry out a reasonable range of activities from their homes if such activities will not adversely affect the amenity of the neighbourhood.

O.04 Increase housing accessibility, diversity, and choice.

O.05 Provide a sympathetic transition in scale between low-scale housing types and higher density areas.

Refer to Section 3.1 – Housing Diversity and Choice of this DCP for the relevant dwelling mix requirements of multi-dwelling housing.

3.4.1 KEY DEVELOPMENT STANDARDS FOR TOWNHOUSES

Larger lots that are supported by a regularly gridded street pattern and uncomplicated topography are often more suitable for townhouse developments. These areas are conducive to more compact, urban housing typologies that are positioned closer to the street and allow for suitable resolution of any supporting basement structures.

The benefit of townhouse development is that basement carparking can assist in reducing the number of driveway crossings along the street, provided careful consideration is given to the resolution of site access to minimise the presence of basement entries. Townhouse development should be designed to create a sense of street address to the most dwellings possible and deliver consistency or rhythm along the streetscape.

Townhouses may take on alternate forms and site configurations; the controls below need to be applied to the specific context of the development. Figure 3.4.1.3.1 to Figure 3.4.1.3.3 illustrate the application of these controls to different development configurations.

All controls in Section 3.4.1 – Key Development Standards for Townhouses must be read in conjunction with Part 3 – Residential Development, Section 3.2 – General Residential Controls, Part 2 – Design in Context, Part 5 – Environmental Management and Part 6 – Traffic and Transport of this DCP.

3.4.1.1 MINIMUM SITE FRONTAGE

Objectives

O.01 Ensure sites are of sufficient width to achieve:

a) the necessary standard of amenity in relation to privacy, solar access, private open space,

b) adequate building separation in accordance with this Section,

c) a sense of street address to all dwellings, and

d) safe and efficient pedestrian and vehicular access.

O.02 Ensure development does not isolate or compromise potential development on adjacent sites.

Controls

C.01 A development lot must have a minimum site frontage width of 24 metres as measured along the front boundary line.

C.02 A corner lot must have a minimum frontage width of 24 metres for both streets.

C.03 Where a site has the minimum frontage width or more, it must nonetheless be demonstrated that the objectives O.01 and O.02 can be satisfied.

3.4.1.2 PRELIMINARY BUILDING ENVELOPE

Objectives

O.01 Ensure development contributes to a visual cohesiveness along the streetscape and identifiable uniformity in bulk, scale, setbacks, and height.

O.02 Provide space in residential areas for landscape amenity that also contributes to the public domain.

O.03 Provide adequate separation between buildings and protect adjoining buildings from overlooking and loss of amenity.

O.04 Ensure new development relates to the surrounding setback patterns.

O.05 Ensure that built form setbacks enable a healthy environment for large canopy trees onsite and adjacent street trees.

Controls

Building Height

C.01 The maximum building height is to be consistent with the *Parramatta LEP 2023* Height of Buildings Map.

C.02 Any row of townhouses that address a public street or other public space are to be a maximum of 2-storeys plus attic.

C.03 Townhouses which do not directly front a public street are to be a maximum of 1-storey plus attic. Additional height may be considered to the rear of the site where it is demonstrated that amenity outcomes are improved.

C.04 Any part of a basement or sub-floor area that projects greater than 1 metre above natural ground level comprises a storey.

C.05 The ground floor level (finished) of any building must not exceed 500mm above or below natural ground level.

Street Setback

C.06 Street setbacks must be provided in accordance with Figure 3.4.1.3.1 to Figure 3.4.1.3.3.

C.07 A minimum front setback of 6 metres is required however, a lesser front setback, to a minimum of 4 metres may be considered subject to a local street character assessment that includes existing street trees and the ability of the street to accommodate the future planting of canopy trees.

C.08 On corner lots, the secondary street setback must be a minimum of 4 metres.

C.09 Notwithstanding the above, the minimum setback to state and regional roads is 10 metres.

C.10 Street setbacks must be measured perpendicular to the boundary and extending to the outer faces of the building including balconies, sunscreens and the like.

Side Setbacks

C.11 A minimum side setback of 1.5 metres must be provided where dwellings are orientated towards the street or rear, as per Figure 3.4.1.3.1 to Figure 3.4.1.3.3.

C.12 Where the primary pedestrian access to rear dwellings is provided along the side boundary, a minimum 3.5 metre side setback must be provided to allow for a 1.2 metre path of travel and adequate landscaping, as per Figure 3.4.1.3.1 to Figure 3.4.1.3.2.

C.13 A minimum side setback of 5 metres must be provided where dwellings address side boundaries, as per Figure 3.4.1.3.3.

C.14 Where the principal private open space of dwellings addresses the side boundary, a minimum 6 metre side setback must be provided, as per Figure 3.4.1.3.2 and Figure 3.4.1.3.3.

C.15 Driveways must be set back a minimum of 1.5 metres from side boundaries to allow for a landscape buffer.

Rear Setback

C.16 Development must provide a minimum rear setback equal to 15% of the site length or 6m, whichever is greater, as measured perpendicular to the rear boundary.

C.17 On corner sites, the rear setback must be a minimum 6 metres. Rear setbacks on corner sites are to be measured from the boundary parallel to the primary living spaces to accommodate the required private open space.

3.4.1.3 BUILDING SEPARATION

Objectives

O.01 Provide adequate privacy, access to light, air and outlook for the occupants of the proposed development, neighbouring properties and future buildings.

O.02 Ensure development does not prejudice the redevelopment of adjoining sites in the future.

Controls

C.01 A minimum 9 metres separation must be provided on site between dwellings where habitable rooms face habitable rooms, as per Figure 3.4.1.3.1 to Figure 3.4.1.3.3.

C.02 A minimum of 3.5 metres separation must be provided between the rear fence of one row of townhouses to the front façade of the neighbouring row, as per Figure 3.4.1.3.1.

C.03 A minimum 5 metres separation must be provided on site where sides of dwellings are perpendicular to the principal private open space of another dwelling, as per Figure 3.4.1.3.2 and Figure 3.4.1.3.3.

C.04 Separation must be measured to the outside face of the building including balconies.

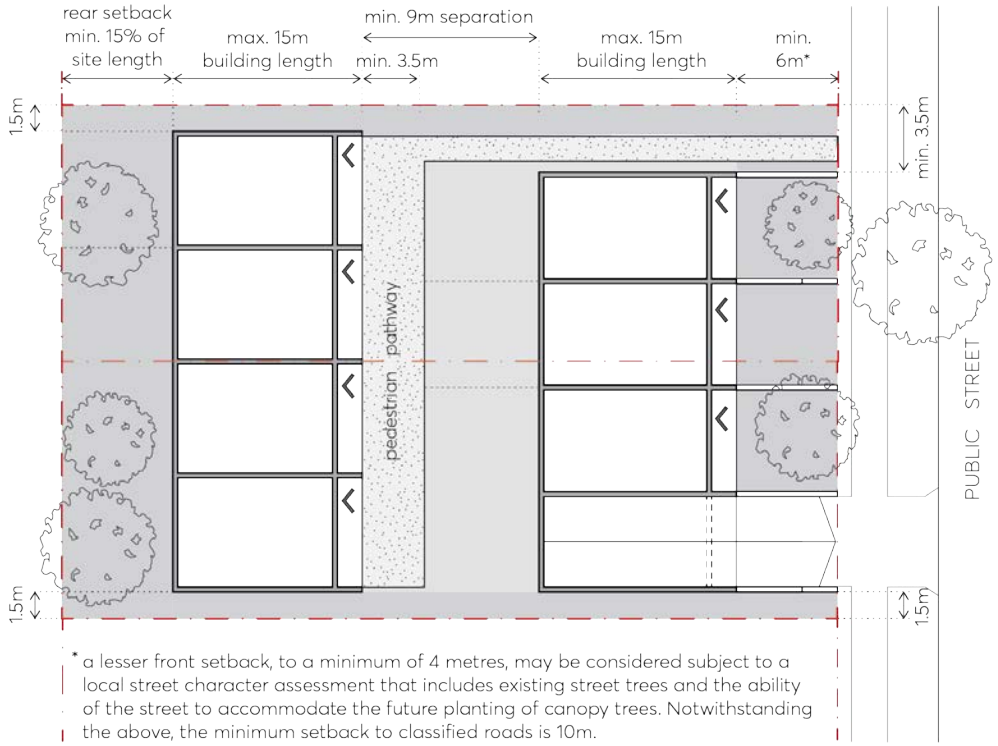


Figure 3.4.1.3.1 – Two Rows of Townhouses Setbacks and Separation

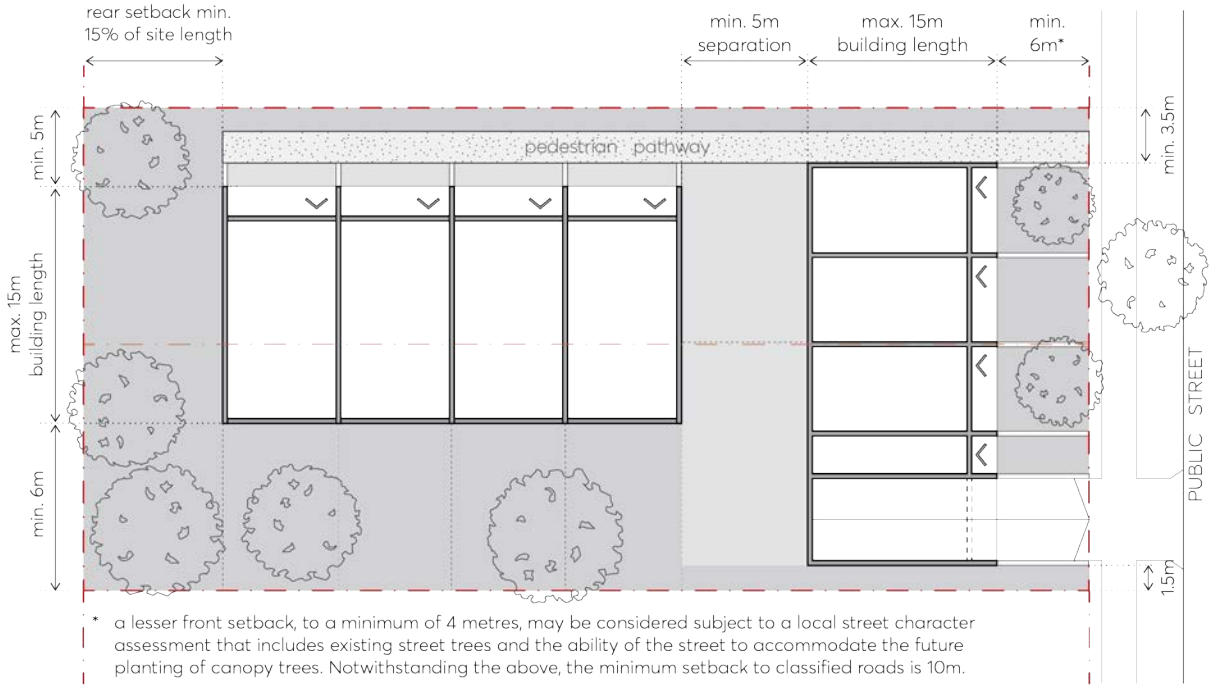


Figure 3.4.1.3.2 – Townhouses L-Configuration Setbacks and Separation

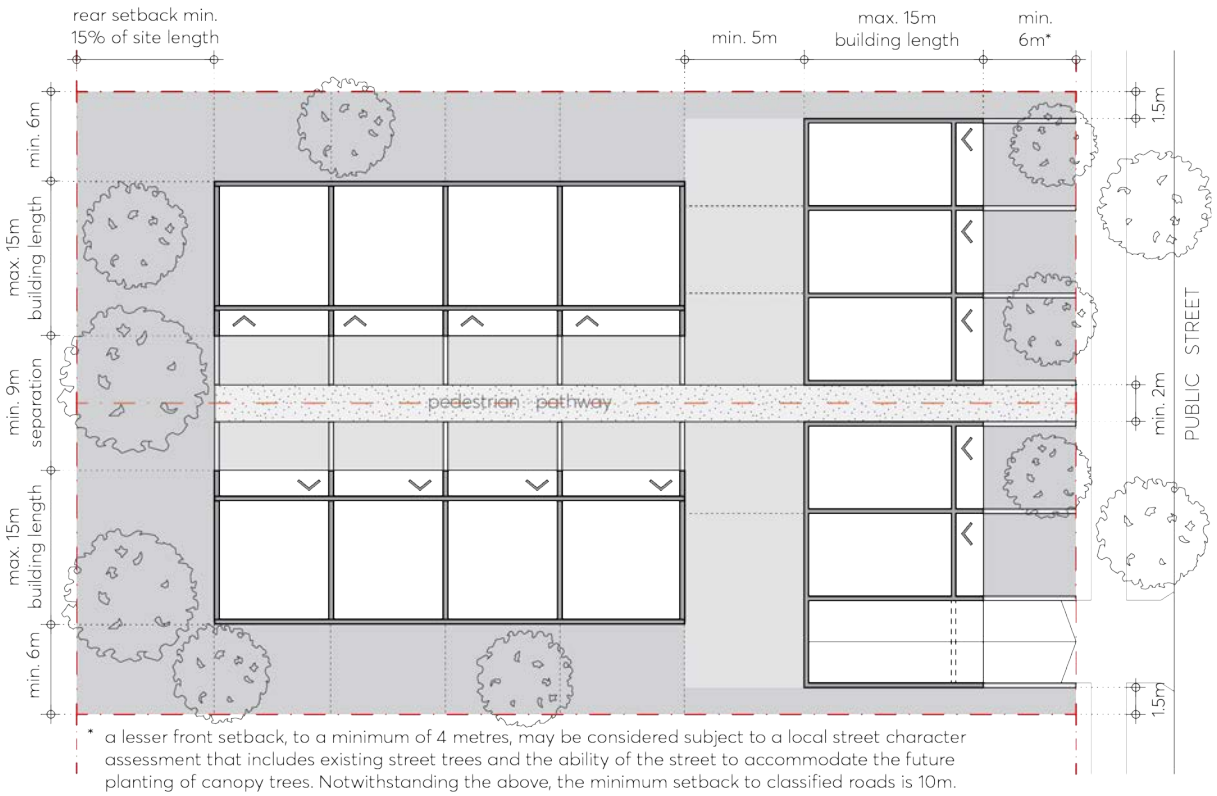


Figure 3.4.1.3.3 – Townhouses T-Configuration Setbacks and Separation

3.4.1.4 STREETSCAPE AND BUILDING ADDRESS

Objectives

O.01 Respond to both the existing and expected future character of medium density development zones.

O.02 Ensure new development complements and enhances the neighbourhood and streetscape character, minimising proposed bulk and scale through consistent articulation, materials, and setbacks.

O.03 Deliver high-quality development with a clear sense of address from the street and visual prominence of dwelling entries in the front façade.

O.04 Improve casual surveillance by locating habitable rooms and dwelling entries along the street frontage.

O.05 Maximise opportunities for buildings to define the public domain.

Controls

C.01 At least one row of dwellings is to face a public street, as per Figure 3.4.1.3.1 to Figure 3.4.1.3.3.

C.02 Individual dwellings should be designed so that habitable rooms are orientated to overlook the street, public spaces, or communal areas.

C.03 Where dwellings do not face the street, they are to have recognisable entries and a sense of address as they would if they faced a public street.

C.04 Townhouses must be clearly and consistently modulated through the use of blade walls or building recesses between balconies to create a sense of continuity and rhythm to the streetscape, as per Figure 3.4.1.7.1 and Figure 3.4.1.7.2.

C.05 Avoid features such as long, blank walls which restrict opportunities for casual surveillance of the street or internal pedestrian pathways.

C.06 Where an internal pedestrian pathway is provided to access any dwellings to the rear, casual surveillance should be encouraged. Rear dwellings must address this pathway which is to be well lit at night and be clear of potential hiding or entrapment spots.

C.07 Pedestrian pathways must be separated from vehicular access and allow for a minimum 1.2 metre wide clear path of travel.

3.4.1.5 OPEN SPACE AND LANDSCAPE

Objectives

O.01 Ensure private open space provides residents with quality usable private outdoor living areas for recreational and outdoor activities.

O.02 Ensure private open space is designed to maximise solar access and be well integrated with living areas.

O.03 Maintain privacy to the occupants of adjacent dwellings and within the proposed development.

O.04 Provide quality private open space in terms of its outlook, orientation, relationship to the dwelling, size and shape and its enclosure and landscape treatment.

Controls

C.01 A minimum 30% of the total site area is to be provided as deep soil, with a minimum dimension of 4 metres x 4 metres.

C.02 A minimum 40% of the total site area, including deep soil zone, is to be provided as landscaping with a minimum dimension of 2 metres x 2 metres.

C.03 A minimum 40m^2 of private open space must be provided for each dwelling. This space is to be contiguous, provided at ground level, located to the rear of each dwelling, and have a minimum dimension of 5 metres.

C.04 Open space within the street setback is not included in the minimum private open space area calculation.

C.05 Where basement car parking extends beyond the building envelope, a minimum soil depth of 1.2 metres is to be provided, measured from the top of slab. This will not be calculated as part of the deep soil zone.

C.06 Balconies are to be orientated towards the street or communal open space and have a minimum dimension of 1.5 metres.

C.07 Communal open space, such as shared gardens or pedestrian pathways, is to be landscaped to provide privacy screening between buildings within and around the site and between private and communal areas on site.

C.08 Trees with a minimum mature height of 13 metres must be planted per parent lot at the following rates:

a) A minimum of 2 trees for sites less than 600m^2.

b) A minimum of 4 trees for sites 600 – 1,500m^2.

c) A minimum of 5 trees for sites greater than 1,500m^2.

Where it is demonstrated that a 13m tree cannot be planted, a smaller canopy tree may be considered.

C.09 All trees must be planted a minimum of 3 metres from the building foundation.

3.4.1.6 PARKING DESIGN AND VEHICULAR ACCESS

Refer to Part 6 – Traffic and Transport of this DCP for parking rates and requirements.

Objectives

O.01 Provide adequate off-street parking for residents.

O.02 Ensure that the location and design of driveways and garages are efficient, safe, and integrated into the design of the development to minimise their visual impact.

O.03 Minimise the environmental impact of basement structures and ensure carparking does not become a visually dominate element on the site or in the streetscape.

Controls

C.01 All carparking in townhouse development must be consolidated and located either at the rear of the site as accessed from a rear lane, or in a basement.

C.02 Basement carparks should be contained within the building footprint and must not to extend beyond the building envelope into the front or rear setback.

C.03 The area of the basement should not significantly exceed the area required to meet the car parking requirements for townhouse development specified in Part 6 – Traffic and Transport of this DCP. Additional basement area may be included as floor space area when calculating floor space ratio.

C.04 Open vehicular dive structures to basement carparking are discouraged. Basement entries should be integrated with the building design as per Figure 3.4.1.7.1 and Figure 3.4.1.7.2.

C.05 Where basement entries cannot be reasonably contained within the building envelope due to challenging topography, dwellings are not to be positioned over open dive structures. In these circumstances, vehicular ramping must be adequately screened with a pergola or similar landscaping solution to minimise the visual impact of dive structures from the street.

C.06 Access from carparks to dwellings must be direct and safe for residents during the day and night. Where a dwelling's car parking is located under a townhouse, private and direct access from the car park to the townhouse is permitted.

3.4.1.7 INTERNAL AMENITY

Objectives

O.01 Provide habitable rooms that are of a height and size that is functional and provides a high standard of amenity for occupants.

Controls

C.01 Each dwelling addressing a public street or rear boundary must have a minimum internal width of 5 metres, measured from the internal face of external walls.

C.02 Each dwelling addressing side boundaries must have a minimum internal width of 6 metres, measured from the internal face of external walls.

C.03 The maximum length of dwelling is 15 metres. Townhouses at the end of a row may provide windows on side walls to articulate this facade provided the location of windows does not compromise visual and acoustic privacy requirements (refer to Section 3.2.2 of this DCP).

C.04 The minimum floor to ceiling height is 2.7 metres on all storeys, excluding attics. Refer to Section 3.2.3 of this DCP for detailed attic controls.

C.05 The depth of any habitable room should not exceed 8 metres from a source of daylight.

C.06 In addition to storage in kitchens, bathrooms and bedrooms, all dwellings are to provide a secure storage space of at least 10 cubic metres. This may be located in the basement.

C.07 Refer to Section 3.2.1 of this DCP for solar access and cross ventilation requirements, and Section 3.2.2 of this DCP for visual and acoustic privacy requirements.

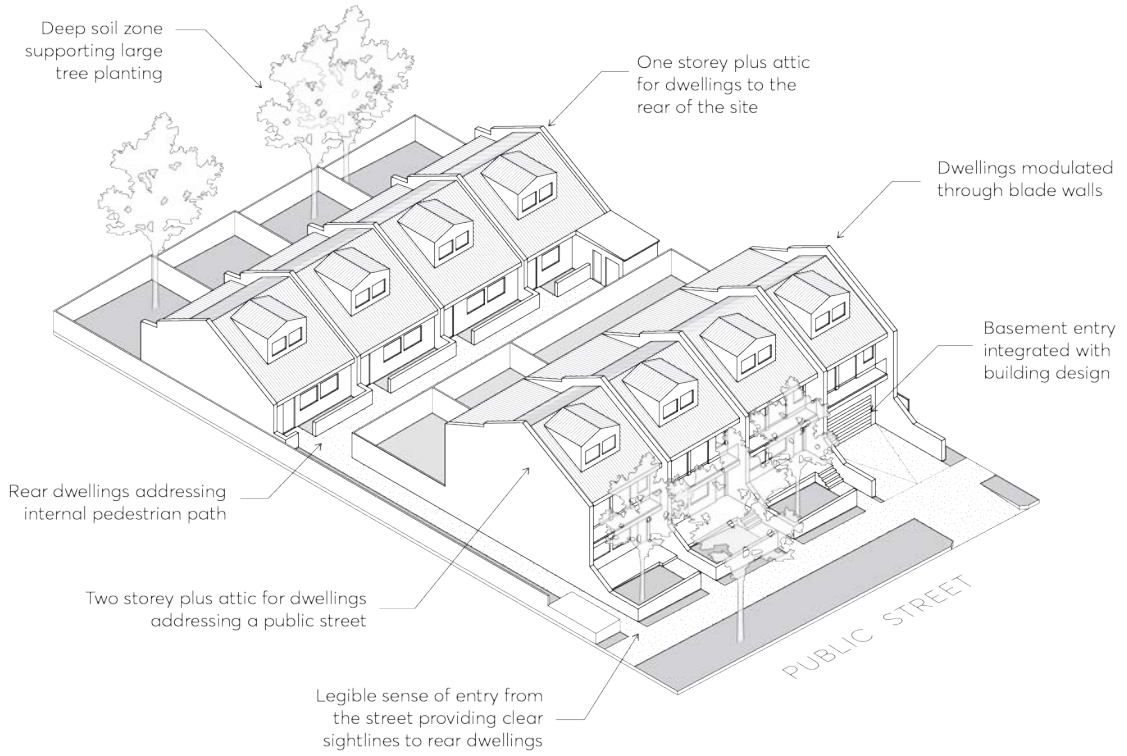


Figure 3.4.1.7.1 – Two Rows of Townhouses

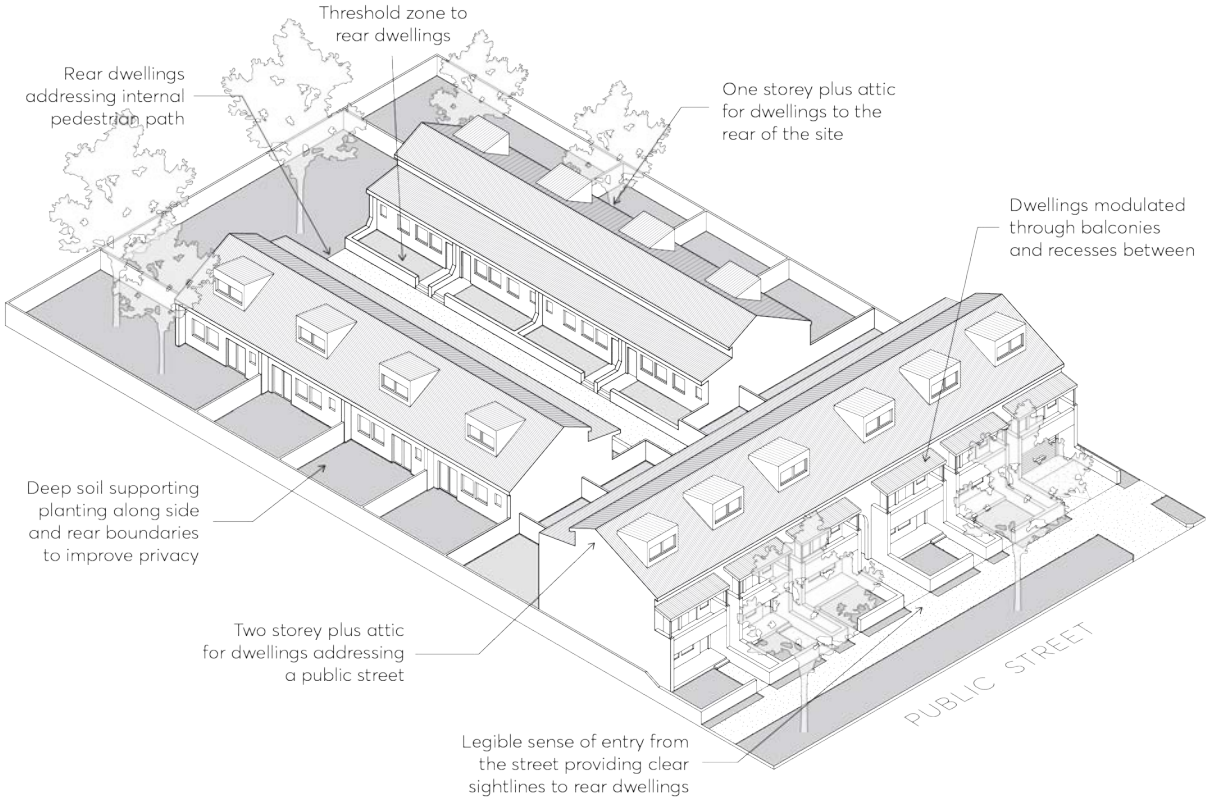


Figure 3.4.1.7.2 – T-configuration Townhouses

3.4.2 KEY DEVELOPMENT STANDARDS FOR TERRACES

The repetitious form of terrace rows contributes significantly to the streetscape character; their strong visual presence is generated by the rhythm of equidistant vertical and horizontal elements. Terrace houses are distinct from other forms of multi-dwelling housing as direct street address is provided to all dwellings. This lends this development type to have better potential for future Torrens Title subdivision.

Areas characterised by shallow lots, or supported by rear lane access, are often more suitable for terrace housing. Terrace housing may also be utilised along sloping frontages by stepping along the street as a method for negotiating complex topographical conditions.

All controls in Section 3.4.2 – Key Development Standards for Terraces must be read in conjunction with Part 3 – Residential Development, Section 3.2 – General Residential Controls, Part 2 – Design in Context, Part 5 – Environmental Management and Part 6 – Traffic and Transport of this DCP.

3.4.2.1 MINIMUM SITE FRONTAGE

Objectives

O.01 Ensure sites are of sufficient width to achieve:

a) the necessary standard of amenity in relation to privacy, solar access, private open space,

b) a sense of street address, and

c) safe and efficient pedestrian and vehicular access.

O.02 Ensure development does not isolate or compromise potential development on adjacent sites.

Controls

C.01 A development lot must have a minimum site frontage width of 21 metres as measured along the front boundary line.

C.02 A corner lot must have a minimum frontage width of 21 metres for both streets.

C.03 Where a site has the minimum frontage width or more, it must nonetheless be demonstrated that the objectives O.01 and O.02 can be satisfied.

3.4.2.2 PRELIMINARY BUILDING ENVELOPE

Objectives

O.01 Ensure development contributes to a visual cohesiveness along the streetscape and identifiable uniformity in bulk, scale, setbacks, and height.

O.02 Provide space in residential areas for landscape amenity that also contributes to the public domain.

O.03 Provide adequate separation between buildings and protect adjoining buildings from overlooking and loss of amenity.

O.04 Ensure new development relates to the surrounding setback patterns.

O.05 Ensure that built form setbacks enable a healthy environment for onsite large canopy tree planting and street trees.

Controls

Building Height

C.01 The maximum building height is to be consistent with the *Parramatta LEP 2023* Height of Buildings Map.

C.02 Notwithstanding the above, terrace housing shall be a maximum of 2-storeys, with attic rooms permitted (see Section 3.2.3 – Attic Design in this DCP).

C.03 Any part of a basement or sub-floor area that projects greater than 1m above natural ground level comprises a storey.

C.04 The ground floor level (finished) of any building must not exceed 500mm above or below natural ground level.

Street Setback

C.05 A minimum front setback of 6 metres is required however, a lesser front setback, to a minimum of 4 metres may be considered subject to a local street character assessment that includes existing street trees and the ability of the street to accommodate the future planting of canopy trees.

C.06 On corner lots, the secondary street setback must be a minimum of 4 metres.

C.07 Where terraces are located on a laneway, buildings must be setback a minimum of 2 metres from the boundary.

C.08 Notwithstanding the above, the minimum setback to state and regional roads is 10 metres.

C.09 Street setbacks must be measured perpendicular to the boundary and extending to the outer faces of the building including balconies, sunscreens and the like.

Side Setbacks

C.10 A minimum side setback of 1.5 metres must be provided, as per Figure 3.4.2.2.1 and Figure 3.4.2.2.2.

C.11 Driveways must be set back a minimum of 1 metre from side boundaries to allow for a landscape buffer between properties.

Rear Setback

C.12 The rear setback must be equal to 30% of the site length, as measured perpendicular to the centre of the rear boundary as per Figure 3.4.2.2.1.

C.13 On corner sites, the rear setback must be a minimum 6 metres, as measured perpendicular to the boundary proposed to support private open space as per Figure 3.4.2.2.2.

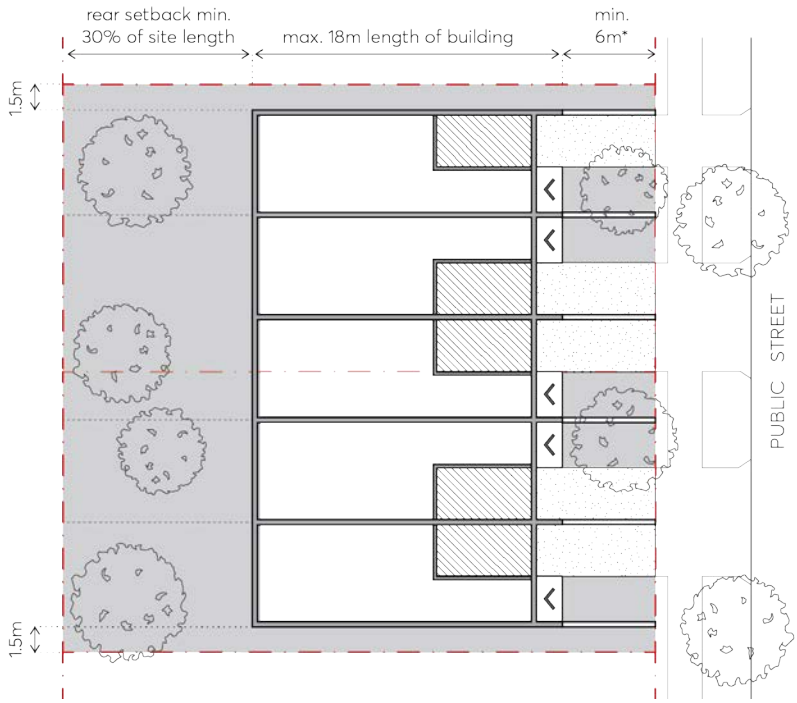


Figure 3.4.2.2.1 – Terrace Housing Site Setbacks

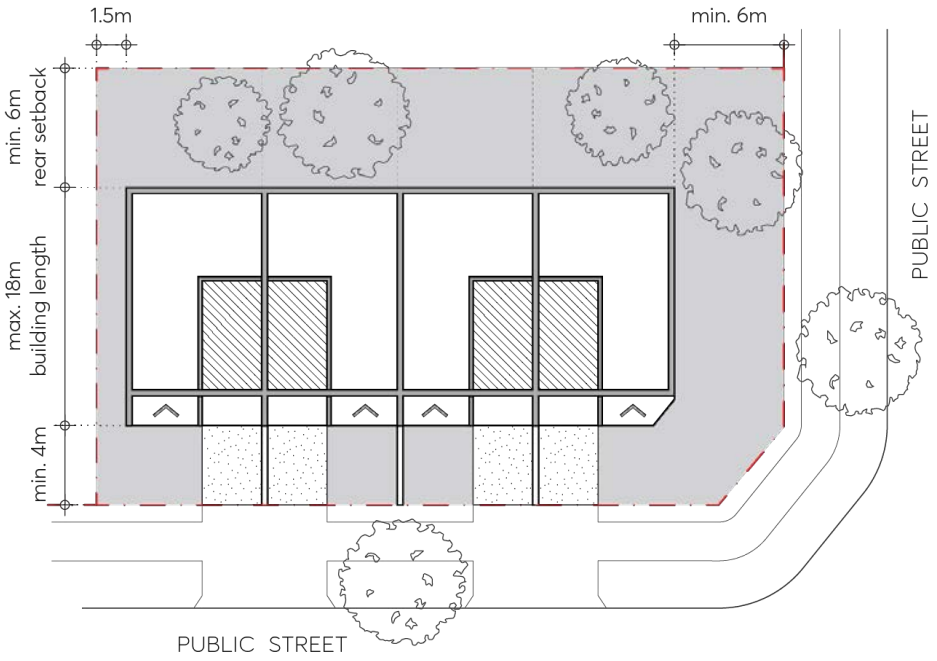


Figure 3.4.2.2.2 – Terrace Housing Corner Site Setbacks

3.4.2.3 STREETSCAPE AND BUILDING ADDRESS

Objectives

O.01 Respond to both the existing and expected future character of medium density development zones.

O.02 Ensure new development complements and enhances the neighbourhood and streetscape character, minimising proposed bulk and scale through consistent articulation, materials, and setbacks.

O.03 Deliver high-quality development with a clear sense of address from the street and visual prominence of dwelling entries in the front façade.

O.04 Improve casual surveillance by locating habitable rooms and dwelling entries along the street frontage.

O.05 Maximise opportunities for buildings to define the public domain.

Controls

C.01 All terraces must face a public street. No terrace may be located behind another dwelling on the same lot.

C.02 Terraces should be designed so that habitable rooms are orientated to overlook the street, public spaces, or communal areas.

C.03 On sites that slope along the street, each terrace module is to be stepped consistently across the site. Front fences should relate to this stepping by forming a horizontal line that remains parallel with the roofline of each dwelling.

C.04 On sloping sites, any semi-undergrounded basements structures must provide level vehicular access from the street and must not result in a three-storey appearance from the street.

C.05 Wall heights must not exceed 7.5 metres, as measured from natural ground level, as per Figure 3.4.2.3.1. On sloping sites, this may require stepping of building form or setting back upper levels.

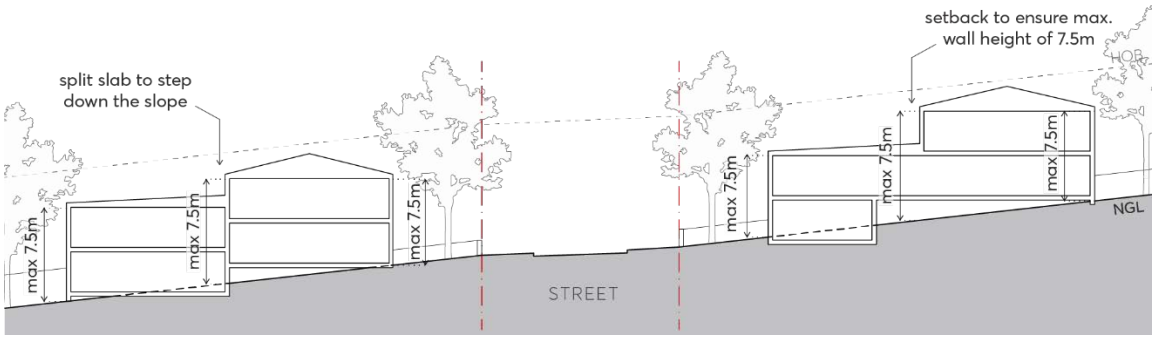


Figure 3.4.2.3.1 – Terrace housing – sloping sites and maximum wall height

C.06 Terraces must be clearly and consistently modulated through the use of blade walls or building recesses between balconies to create a sense of continuity and rhythm to the streetscape, as per Figure 3.4.2.6.1.

3.4.2.4 OPEN SPACE AND LANDSCAPE

Objectives

O.01 Ensure private open space provides residents with quality usable private outdoor living areas for recreational and outdoor activities.

O.02 Ensure private open space is designed to maximise solar access and be well integrated with living areas.

O.03 Maintain privacy to the occupants of adjacent dwellings and within the proposed development.

O.04 Provide quality private open space in terms of its outlook, orientation, relationship to the dwelling, size and shape and its enclosure and landscape treatment.

Controls

C.01 A minimum 30% of the total site area is to be provided as deep soil, with a minimum dimension of 4 metres x 4 metres, where:

a) at least 50% of the deep soil is located at the rear of the site, and

b) at least 15% of the deep soil is located at the front of the site.

C.02 A minimum 40% of the total site area, including deep soil zone, is to be provided as landscaping with a minimum dimension of 2 metres x 2 metres.

C.03 A minimum 40m^2 of private open space must be provided for each dwelling. This space is to be contiguous, provided at ground level, located to the rear of each dwelling, and have a minimum dimension of 5 metres. Open space within the street setback is not included in the minimum private open space area calculation.

C.04 Where basements are provided and extend beyond the building envelope, a minimum soil depth of 1.2 metres is to be provided, measured from the top of the slab, and will not be calculated as part of the deep soil zone.

C.05 Balconies are to be orientated to the street or other element of the public domain and have a minimum dimension of 1.5 metres.

C.06 Trees with a minimum mature height of 13 metres must be planted per parent lot at the following rates:

a) A minimum of 2 trees for sites less than 600m^2.

b) A minimum of 4 trees for sites 600 – 1,500m^2.

c) A minimum of 5 trees for sites greater than 1,500m^2.

Where it is demonstrated that a 13m tree cannot be planted, a smaller canopy tree may be considered.

C.07 All trees must be planted a minimum of 3 metres from the building foundation.

3.4.2.5 PARKING DESIGN AND VEHICULAR ACCESS

Refer to Part 6 – Traffic and Transport of this DCP for parking rates and requirements.

Objectives

O.01 Provide adequate off-street parking for residents.

O.02 Ensure that the location and design of driveways and garages are efficient, safe, and integrated into the design of the development to minimise their visual impact.

Controls

C.01 Terrace housing is to provide individual garages accessed from the street. Basement parking is discouraged.

C.02 The visual presence of garages is to be minimised and predominance given to the pedestrian entry and habitable space facing the street at ground level.

C.03 Where dwellings require two parking spaces, only one space should be enclosed within a garage, and the second is to utilise the driveway as a tandem hard stand space.

C.04 Where slope conditions require a basement, the area of the basement should not significantly exceed the area required to meet the car parking requirements for terrace housing specified in Part 6 – Traffic and Transport of this DCP. Additional basement area may be included as floor space area when calculating floor space ratio.

3.4.2.6 INTERNAL AMENITY

Objectives

O.01 Provide habitable rooms that are of a height and size that is functional and provides a high standard of amenity for occupants.

Controls

C.01 Each dwelling addressing a public street or rear boundary must have a minimum internal width of 5 metres, measured from the internal face of external walls.

C.02 The maximum length of dwelling is 18 metres. Terraces at the end of a row may provide windows on side walls to articulate this facade.

C.03 The minimum floor to ceiling height is 2.7 metres on all storeys, excluding attics. Refer to Section 3.2.3 of this DCP for detailed attic controls.

C.04 In addition to storage in kitchens, bathrooms and bedrooms, all dwellings are to provide a secure storage space of at least 10 cubic metres.

C.05 Refer to Section 3.2.1 of this DCP for solar access and cross ventilation requirements, and Section 3.2.2 of this DCP for visual and acoustic privacy requirements.

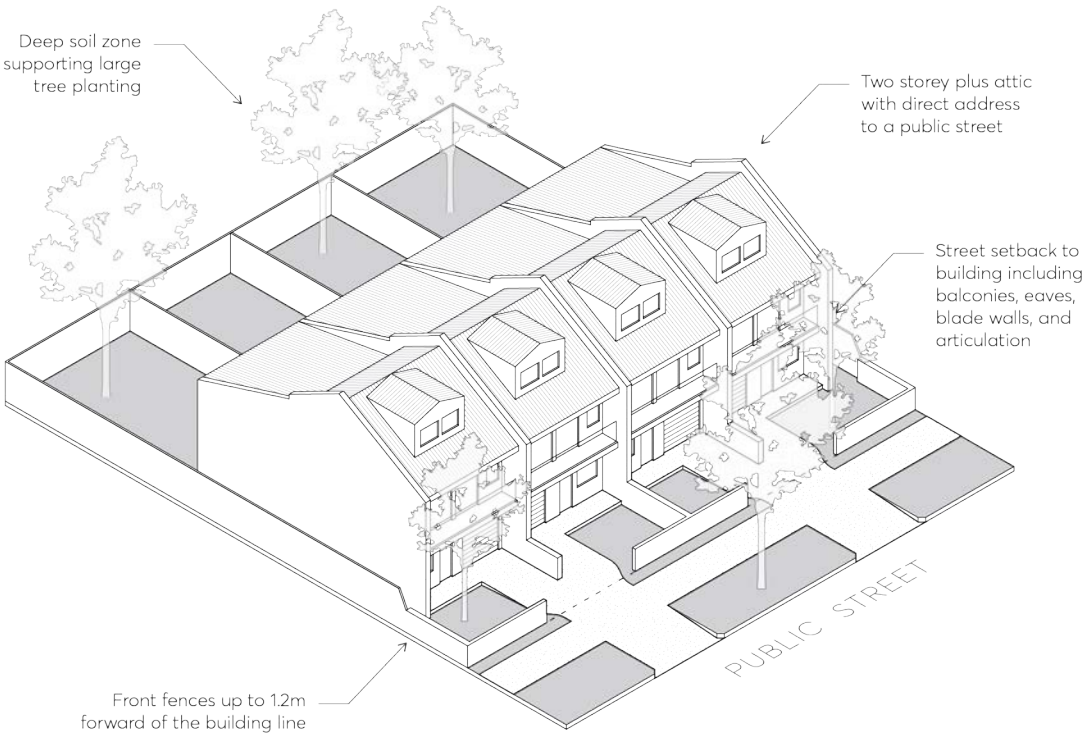


Figure 3.4.2.6.1 – Standard Row of Terraces

3.4.3 KEY DEVELOPMENT STANDARDS FOR MANOR HOUSES

Manor houses are single buildings comprising of three or four dwellings on one lot, where each dwelling is attached to another by a common wall or floor and at least one dwelling is located above another.

Manor houses are a unique medium-density housing typology as they can often be delivered without lot amalgamation or basement carparking, though benefit from rear lane access or corner locations. They also offer a suitable medium-density response to sloping sites, as their smaller footprint is able to appropriately negotiate the topography.

Manor houses should be perceived as a single house from the street, built to a similar scale and character as surrounding residential homes, but are typically strata subdivided with common areas for circulation, parking, and shared gardens.

All controls contained in Section 3.4.3 – Key Development Standards for Manor Houses must be read in conjunction with Part 3 – Residential Development, Section 3.2 – General Residential Controls, Part 2 – Design in Context, Part 5 – Environmental Management and Part 6 – Traffic and Transport of this DCP.

3.4.3.1 MINIMUM SITE FRONTAGE AND LOT SIZE

Objectives

O.01 Ensure sites are of sufficient size to achieve:

a) the necessary standard of amenity in relation to privacy, solar access, private open space,

b) a sense of street address, and

c) safe and efficient pedestrian and vehicular access.

Controls

C.01 A development lot must be a minimum of 600m^2, as per the *Parramatta LEP 2023*.

C.02 A development lot must have a minimum site frontage width of 15 metres as measured along the front boundary line.

C.03 A corner lot must have a minimum frontage width of 15 metres for the shortest street frontage.

C.04 Where a site has the minimum frontage width or more, it must nonetheless be demonstrated that the objectives O.01 can be satisfied.

3.4.3.2 PRELIMINARY BUILDING ENVELOPE

Objectives

O.01 Ensure development contributes to a visual cohesiveness along the streetscape and identifiable uniformity in bulk, scale, setbacks and height.

O.02 Provide space in residential areas for landscape amenity that also contributes to the public domain.

O.03 Provide adequate separation between buildings and protect adjoining buildings from overlooking and loss of amenity.

O.04 Ensure that built form setbacks enable a healthy environment for onsite large canopy tree planting and street trees.

Controls

Building Height

C.01 The maximum building height is to be consistent with the *Parramatta LEP 2023* Height of Buildings Map.

C.02 Notwithstanding the above, manor houses shall be a maximum of 2-storeys, excluding any basement. Attics or loft spaces may be permitted where contained within the roof form. See Section 3.5.3 – Attic Design of this DCP and Figure 3.4.3.7.1.

C.03 Any part of a basement or sub-floor area that projects greater than 1m above natural ground level comprises a storey.

C.04 The ground floor level (finished) of any building must not exceed 500mm above or below natural ground level.

Street Setback

C.05 Buildings must be setback a minimum of 6 metres from the street boundary, as per Figure 3.4.3.2.1 and Figure 3.4.3.2.2, as measured perpendicular to the boundary and extending to the outer faces of the building including balconies, sunscreens, and the like.

C.06 On corner lots, the secondary street setback must be a minimum of 3 metres.

C.07 Notwithstanding the above, the minimum setback to state and regional roads is 10 metres.

Side Setbacks

C.08 A minimum side setback of 1.5 metres must be provided, as per Figure 3.4.3.2.1 and Figure 3.4.3.2.2.

C.09 Driveways must be set back a minimum of 1 metre from side boundaries to allow for a landscape buffer.

C.10 The maximum length of wall along the side boundary is 12 metres. A minimum recess (measured from the face of the external wall) of 1.5 metres (depth) by 2 metres (length) is required to all storeys after 12 metres, as per Figure 3.4.3.2.1 and Figure 3.4.3.2.2.

Rear Setback

C.11 The rear setback must be equal to 25% of the site length, measured perpendicular to the centre of the rear boundary, as per Figure 3.4.3.2.1.

C.12 On corner sites, the rear setback must be a minimum 6 metres, as measured perpendicular to the boundary proposed to support private open space as per Figure 3.4.3.2.2.

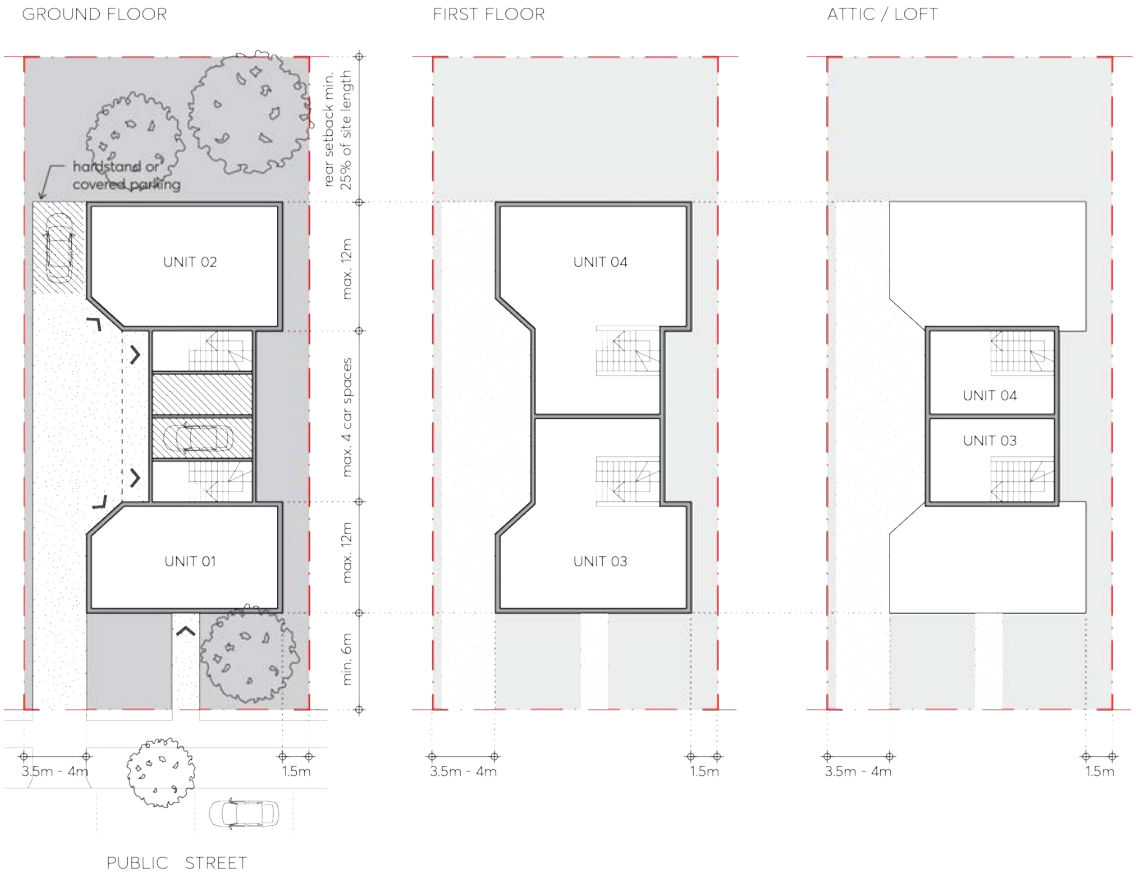


Figure 3.4.3.2.1 – Site setbacks for manor houses with at grade car parking

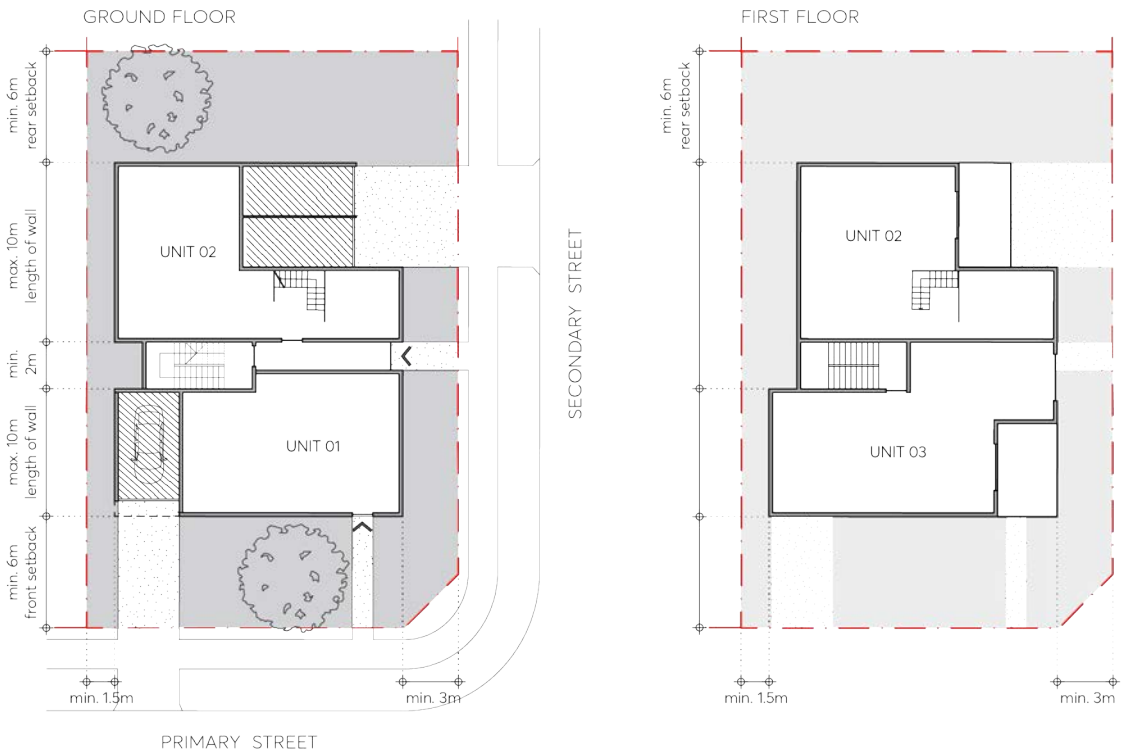


Figure 3.4.3.2.2 – Site setbacks for manor houses on a corner lot

3.4.3.3 BUILDING SEPARATION

Objectives

O.01 Provide adequate privacy, access to light, air and outlook for the occupants of the proposed development, neighbouring properties, and future buildings.

O.02 Ensure development does not prejudice the redevelopment of adjoining sites in the future.

Controls

C.01 Building separation is to provide generous private open spaces for optimum visual and acoustic privacy, communal open space, and significant landscaping.

C.02 Development must provide:

a) A minimum separation of 12 metres between habitable rooms or balconies.

b) A minimum separation of 9 metres between habitable and non-habitable rooms.

c) A minimum separation of 6 metres between non-habitable rooms.

3.4.3.4 STREETSCAPE AND BUILDING ADDRESS

Objectives

O.01 Respond to both the existing and expected future character of medium density development zones.

O.02 Ensure new development complements and enhances the neighbourhood and streetscape character, minimising proposed bulk and scale through consistent articulation, materials, and setbacks.

O.03 Deliver high-quality development with a clear sense of address from the street and visual prominence of dwelling entries in the front façade.

O.04 Improve casual surveillance by locating habitable rooms and dwelling entries along the street frontage.

Controls

C.01 Manor houses should present as a large two-storey dwelling house from the street.

C.02 Dwellings are to be primarily orientated to the street or rear. A minimum of two dwellings are to face the street, as per Figure 3.4.3.7.1.

C.03 On corner lots, at least one dwelling is to face the primary street and one the secondary street, as per Figure 3.4.3.7.2.

C.04 Dwellings should be designed so that habitable rooms are orientated to overlook the street, public spaces, or communal areas.

C.05 Site planning and internal building layouts should minimise the need for pedestrian pathways that are segregated from street. Where such pathways are necessary, casual surveillance should be encouraged, they should be well lit at night and be clear of potential hiding or entrapment spots.

C.06 Manor houses are to be designed to integrate with the built and natural elements defining the streetscape, including the street layout, building patterns and landscape elements contributing to the streetscape, including street trees and front gardens.

3.4.3.5 OPEN SPACE AND LANDSCAPE

Objectives

O.01 Provide deep soil areas that support trees and landscaping that will mature and contribute to the amenity of the site and locality.

O.02 Provide low maintenance communal open space areas for residents that facilitate opportunities for recreational and social activities, passive amenity, landscaping, and deep soil planting.

O.03 Ensure private open space provides residents with quality usable private outdoor living areas for recreational and outdoor activities.

O.04 Maximise solar access to private and communal open spaces.

O.05 Maintain privacy to the occupants of adjacent dwellings and within the proposed development.

O.06 Provide quality open space in terms of its outlook, orientation, relationship to the dwelling, size and shape and its enclosure and landscape treatment.

Controls

C.01 A minimum 30% of the total site area is to be provided as deep soil, with a minimum dimension of 4 metres x 4 metres.

C.02 A minimum 40% of the total site area, including deep soil zone, is to be provided as landscaping with a minimum dimension of 2 metres x 2 metres.

C.03 For apartments at ground level, a minimum private open space area of 15m² is to be provided with a minimum dimension of 2 metres.

C.04 For apartments on the first-floor level, a private open space with a minimum dimension of 2 metres must be provided for each dwelling, as follows:

a) 1-bedroom/studio units must provide a minimum of 8m² per dwelling.

b) 2-bedroom units must provide a minimum of 12m² per dwellings.

c) 3 or more-bedroom units must provide a minimum of 16m² per dwelling.

C.05 Trees with a minimum mature height of 13 metres must be planted per parent lot at the following rates:

a) A minimum of 2 trees for sites less than 600m².

b) A minimum of 4 trees for sites 600 – 1,500m².

c) A minimum of 5 trees for sites greater than 1,500m².

Where it is demonstrated that a 13m tree cannot be planted, a smaller canopy tree may be considered.

C.06 At least one tree must be planted within the front setback zone and all trees must be planted a minimum of 3 metres from the building foundation.

3.4.3.6 PARKING DESIGN AND VEHICULAR ACCESS

Refer to Part 6 – Traffic and Transport of this DCP for parking rates and requirements.

Objectives

O.01 Provide adequate off-street parking for residents.

O.02 Ensure that the location and design of driveways and garages are efficient, safe, and integrated into the design of the development to minimise their visual impact.

O.03 Minimise the environmental impact of any basement structures and ensure carparking does not become a visually dominate element on the site or in the streetscape.

Controls

C.01 At grade carparking is preferrable for manor house development.

C.02 On sloping sites, basement carparking may be provided where it is possible to utilise the slope of the site without the use of steep basement ramps. Any basement car parking must not extend beyond the building footprint.

C.03 Where slope conditions require a basement, the area of the basement should not significantly exceed the area required to meet the car parking requirements for manor houses specified in Part 6 – Traffic and Transport of this DCP. Additional basement area may be included as floor space area when calculating floor space ratio.

C.04 Any basement structures must be contained within the building footprint.

C.05 Garages, carports or basement entries are to be setback a minimum of 1 metre behind the front wall of the building.

C.06 Garage doors are to be a maximum of 5.5 metres.

C.07 Driveway crossovers are to be a maximum of 3.5 metres at the kerb.

C.08 Where developments have a car park or internal laneway for access to a car park, building layouts should provide for windows, lighting or doors that address the car park.

C.09 Access from the car park to dwellings should be direct and safe for residents during the day and night.

3.4.3.7 INTERNAL AMENITY

Objectives

O.01 Provide habitable rooms that are of a height and size that is functional and provides a high standard of amenity for occupants.

Controls

C.01 Dwellings are to be consistent with the apartment size and layout requirements of the Apartment Design Guide published by NSW Department of Planning and Environment.

C.02 The minimum floor to ceiling height is 2.7 metres on all storeys.

C.03 The maximum depth of open plan layouts that combine living, dining and kitchen spaces must be 8 metres from a window.

C.04 In addition to storage in kitchens, bathrooms and bedrooms, the following is required:

a) 1-bedroom units/studios must provide 6 cubic metres of storage with a minimum dimension of 500mm.

b) 2-bedroom units must provide 8 cubic metres of storage with a minimum dimension of 500mm.

c) 3 or more-bedroom units must provide 10 cubic metres of storage with a minimum dimension of 500mm.

C.05 Refer to Section 3.2.1 of this DCP for solar access and cross ventilation requirements, and Section 3.2.2 of this DCP for visual and acoustic privacy requirements.

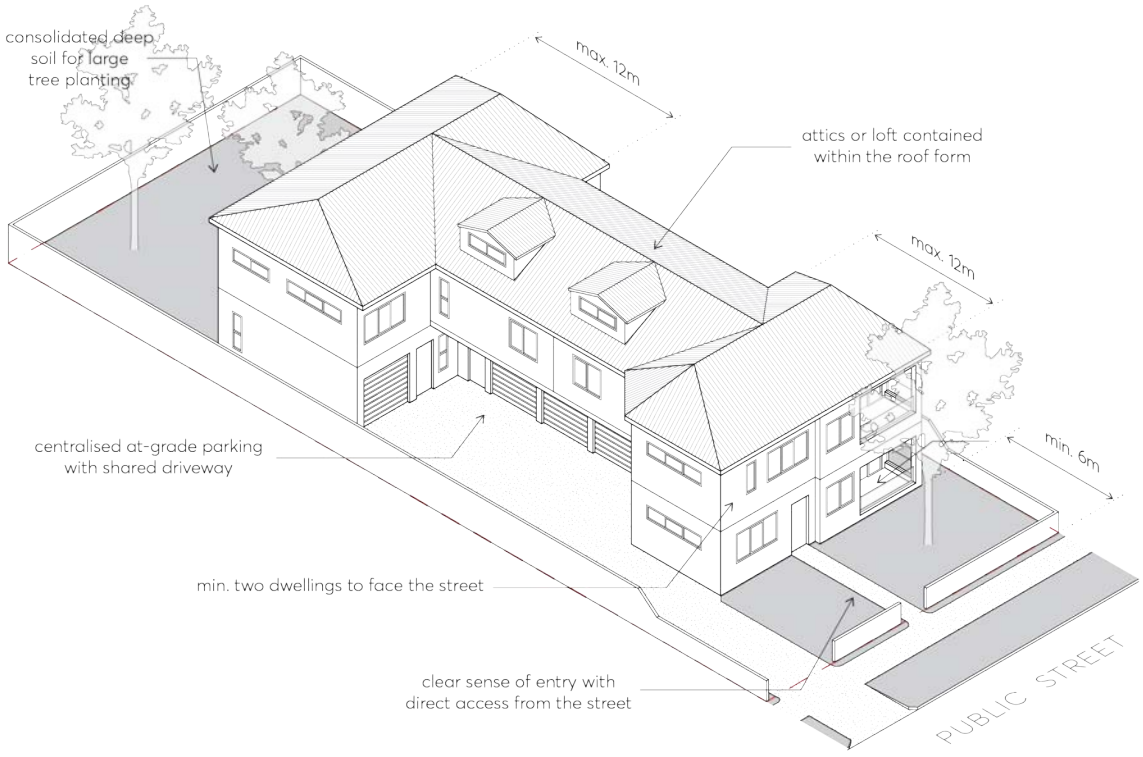


Figure 3.4.3.7.1 – Manor Home with at Grade Parking

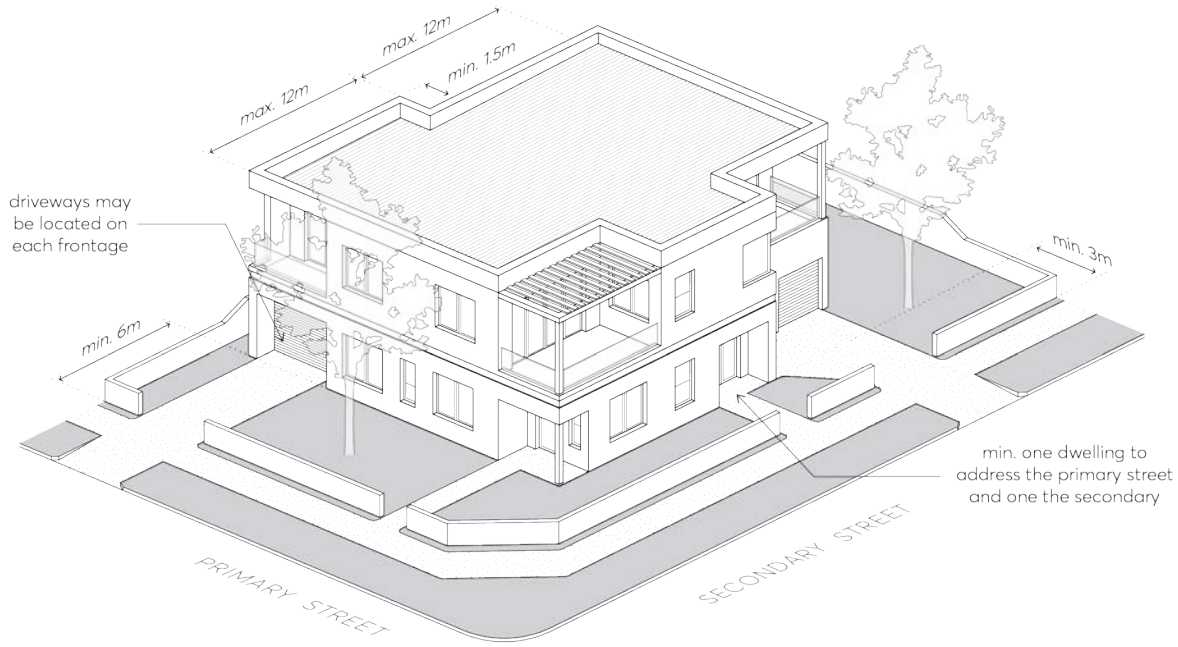


Figure 3.4.3.7.2 – Manor Home Corner Lot

3.5 APARTMENT BUILDINGS

Within the planned high growth for the City of Parramatta (the City), apartment and mixed-use buildings are an important housing choice and will be home for many residents. These buildings are located within centres, adjoining urban neighbourhoods or renewal precincts with easy access to transport, employment, and services.

This Section addresses apartments, shop top housing and mixed-use buildings, which are generally located in centres and urban neighbourhoods, where street wall and infill types between 3- and 8-storeys shape the evolving context. In major centres and renewal precincts, site specific building envelopes and controls define the emerging future context with a range of building forms including podium tower types. Places specific controls for these areas are addressed in Part 8 – Centres, Precincts, Special Character Areas and Specific Sites or Part 9 – Parramatta City Centre.

The following controls complement and should be read in conjunction with the Apartment Design Guide published by NSW Department of Planning and Environment (Apartment Design Guide). They are specific to Parramatta's context and include guidance for lot sizes, the relationship of buildings to the street, local character, patterns of open space and tree planting outcomes.

Refer to the *Parramatta LEP 2023* for the maximum permissible building height and floor space ratio.

Objectives

O.01 Provide a variety of housing types to address the housing needs of the community within a higher-density residential environment.

O.02 Enable proximity to other land uses that provide facilities or services to meet the day to day needs of residents.

O.03 Provide opportunities for people to carry out a reasonable range of activities from their homes if such activities will not adversely affect the amenity of the neighbourhood.

O.04 Allow for a range of community facilities to be provided to serve the needs of residents, workers, and visitors in residential neighbourhoods.

O.05 Increase housing accessibility, diversity, and choice.

3.5.1 KEY DEVELOPMENT STANDARDS FOR APARTMENT BUILDINGS

Apartment buildings are permitted in R4 High Density Residential and MU1 Mixed Use zones. These buildings enable higher density living in an urban environment with good residential amenity, including privacy, sunlight access and natural ventilation. As apartment buildings are typical in areas undergoing change or where new urban neighbourhoods are being established, their relationship to neighbouring buildings, the street, and open space patterns guide the site layout and building design. Adequate lot sizes ensure privacy and separation between buildings and support sufficient areas for landscape and tree planting. Buildings address the street and reinforce the desired street character with appropriate setbacks and landscape design.

All controls contained in Section 3.5.1 – Key Development Standards for Apartment Buildings must be read in conjunction with Part 3 – Residential Development, Section 3.2 – General Residential Controls, Part 2 – Design in Context, Part 5 – Environmental Management and Part 6 – Traffic and Transport of this DCP.

3.5.1.1 MINIMUM SITE FRONTAGE

Objectives

O.01 Ensure sites are of sufficient size to achieve:

a) the necessary standard of amenity in relation to privacy, solar access, private open space,

b) a sense of street address, and

c) safe and efficient pedestrian and vehicular access.

O.02 Ensure development does not isolate or compromise development potential on adjacent sites.

Controls

C.01 A development lot must have a minimum site frontage width of 24 metres as measured along the front boundary line.

C.02 A corner lot must have a minimum site frontage width of 18 metres for the shortest street frontage.

C.03 Where a site has the minimum frontage width or more, it must nonetheless be demonstrated that the objectives O.01 and O.02 can be satisfied.

3.5.1.2 PRELIMINARY BUILDING ENVELOPE

Objectives

O.01 Ensure development contributes to the visual cohesiveness of the streetscape with uniform bulk, scale, setbacks, and street wall height.

O.02 Provide adequate separation between buildings and protect adjoining buildings from overlooking and loss of amenity.

O.03 Provide space in residential areas for landscape amenity that also contributes to the public domain.

O.04 Contribute to the privacy of ground floor apartments along streets with landscape area and/or private open space.

O.05 Ensure that built form setbacks enable a healthy environment for onsite large canopy tree planting and street trees.

Controls

Building Height

C.01 The maximum building height must be consistent with the *Parramatta LEP 2023* Height of Buildings Map and correspond in storeys as follows:

Metres (as per the LEP)	Maximum number of storeys
11 m	3 storeys
14 m	4 storeys
17 m	5 storeys
20 m	6 storeys
23 m	7 storeys
26 m	8 storeys

C.02 Any part of a basement or sub-floor area that projects greater than 1 metre above natural ground level comprises a storey.

Street Setback

C.03 Buildings must be set back a minimum of 6 metres from the street boundary and include a minimum 3m setback for common landscape area, as per Figure 3.5.1.2.1.

C.04 Buildings must be set back a minimum of 3 metres from the secondary street or laneway frontage to support an adequate threshold to ground floor apartments and boundary landscaping.

C.05 For sites that are zoned MU1 Mixed Use and are not required to have an active ground floor, an analysis of existing and likely future context must be submitted to determine the most appropriate ground floor uses, setbacks and built form at the street.

C.06 Notwithstanding the above, the minimum setback to state and regional roads is 10 metres.

C.07 A minimum 3 metre upper-level setback to the street wall is to be provided where:

a) there is a need to respond to adjacent buildings of a lower-scale;

b) adjacent buildings include upper-level setbacks; and

c) new development is adjacent to a heritage item to reduce visual impact and to reflect the scale of the heritage item.

C.08 The street wall height of apartment buildings must generally be consistent with the predominant street wall height in storeys of adjacent buildings. An analysis of existing and likely future context must be submitted to determine the most appropriate street wall height and upper-level setback.

C.09 Street setbacks must be measured perpendicular to the boundary, extending to the outer faces of the building including balconies, sunscreens, and the like.

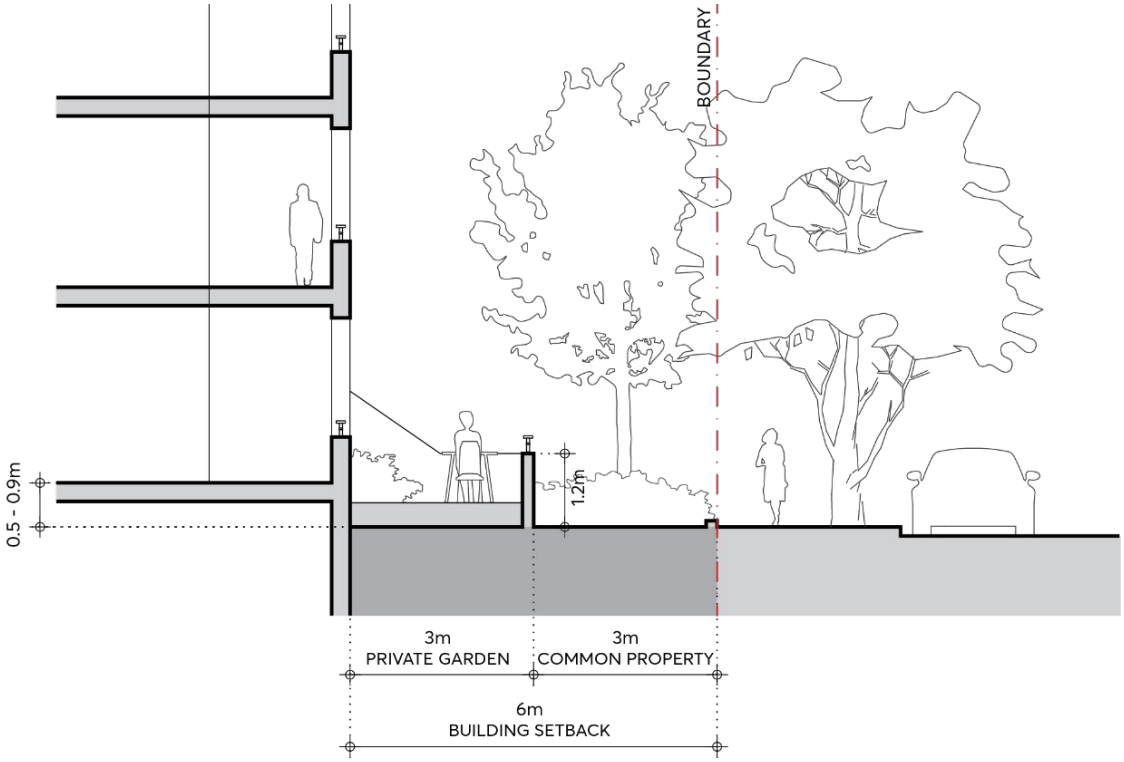


Figure 3.5.1.2.1 – Front setback to residential flat buildings

Side and Rear Setbacks

C.10 Side and rear setback are to be provided to ensure compliance with the residential privacy and separation requirements of the Apartment Design Guide.

C.11 Where a site adjoining the subject site does not contain an apartment building at the time the development application is being assessed, the separation required must be that specified for habitable rooms and balconies in Section 3F of the Apartment Design Guide.

C.12 The required separation distance must be equally apportioned between adjacent sites to determine the required side and rear boundary setbacks (for example, if two 4-storey apartment buildings have opposing balconies fronting a side boundary, then the separation must be 12m overall and be shared equally with a 6m side setback for both properties.).

3.5.1.3 STREETSCAPE AND BUILDING ADDRESS

Objectives

O.01 Locate and shape buildings to prioritise the definition of public streets and open spaces.

O.02 Respond to both the existing and planned future character of high-density development zones.

O.03 Encourage attractive street frontages and improve pedestrian amenity and safety.

Controls

C.01 Site planning and the internal layout of developments should prioritise building entries which are orientated to the street and accessed by a direct pedestrian pathway.

C.02 Individual ground floor apartment facing the street must have individual apartment entries with front hinged doors (sliding doors are discouraged). Exceptions to individual entries may be considered for areas with steep topography and/or high flood planning levels.

C.03 Where entries are not able to be located on a street frontage, provide:

a) opportunities for casual surveillance from adjacent buildings,

b) direct sightlines from the public domain,

c) places free from concealment or entrapment, and

d) adequate nigh time lighting.

C.04 The maximum length of building along the street is 45 metres.

C.05 Where the permissible building length is exceeded, the building frontage must be articulated with a 3 metre by 3 metre full building height recess to visually separate the building into two frontages, each with no more than 30 metres in length.

C.06 Where possible, breaks between buildings are to be located so as to create a visual extension of streets or lanes in the surrounding area and/or define visual alignments between public spaces and communal open spaces.

C.07 Each building entry and lift/stair core must not serve more than 25 dwelling per core for buildings up to 8 storeys.

C.08 Groups of dwellings served by the same vertical circulation lift or stair are to be designed as a distinct 'building component' to increase the vertical articulation of large developments.

C.09 In established areas undergoing redevelopment from lower density housing to higher density apartments, the grain of existing subdivision and development patterns must be reflected in the façade proportions, modulation, and materiality.

C.10 At the street, the ground floor level (finished) of any dwelling should be provided between 500mm to 900mm above natural ground level, as per Figure 3.5.1.2.1. Building access through centralised lobbies must be provided at street level and designed so that all level changes (stairs, ramps or lifts) are internalised.

C.11 The front setback must be designed so as not to be dominated by stairs, ramps, level changes, handrails, and other servicing structures.

3.5.1.4 OPEN SPACE AND LANDSCAPE

Objectives

O.01 Provide deep soil areas that support trees and landscaping that will mature and contribute to the amenity of the site and locality.

O.02 Design low maintenance communal open space areas for residents that facilitate opportunities for recreational and social activities, passive amenity, landscaping, and deep soil planting.

O.03 Maximise solar access to private and communal open spaces.

O.04 Ensure private open spaces are designed to provide residents with quality, usable private outdoor living areas for recreational and outdoor activities.

Controls

C.01 A minimum 30% of the total site area is to be provided as deep soil, of which at least 50% is located to the rear of the site.

C.02 For sites less than 1,500m^2 in size, the deep soil zone must have a minimum dimension of 4 metres x 4 metres.

C.03 On sites over 1,500m^2 in size, a minimum dimension of 6 metres will be required for part of the deep soil zone, equal to at least 7% of the total site area in accordance with the Apartment Design Guide. The remaining 23% of the deep soil zone may be provided with a minimum dimension of 4 metres x 4 metres.

C.04 Where basements are provided and extend beyond the building envelope, a minimum soil depth of 1.2 metres is to be provided, measured from the top of the slab, and will not be calculated as part of the deep soil zone.

C.05 Residential flat buildings must provide communal open space to meet the requirements of Section 3D of the Apartment Design Guide.

C.06 Communal open space is to be:

a) Located where it is highly visible and directly accessible to the maximum number of dwellings.

b) Designed with an integral role in the site and include uses such as circulation, BBQ, play areas or passive amenity.

c) Integrated with the deep soil zone to provide a landscape setting with opportunities for large and medium size tree planting.

d) Located adjacent to surrounding public open spaces such as reserves and public through site links where appropriate.

e) Be dimensioned so that it provides a proportionate response to the length and height of the development.

C.07 If it is demonstrated that the minimum consolidated area of common open space cannot be provided at ground level due to constrained site conditions, the communal open space may be located on elevated gardens or roof tops, provided that:

a) The area and overall design can be used for the recreation and amenity needs of all residents.

b) There will be no significant impact on surrounding properties in respect to loss of privacy.

c) The proposed common open space will provide a similar level of amenity as common open space at ground level.

d) The area is accessible by a lift.

C.08 A contiguous area of private open space with a minimum dimension of 2 metres must be provided for each dwelling as follows:

a) 1-bedroom/studio units must provide a minimum of 8m^2 per dwelling.

b) 2-bedroom units must provide a minimum of 12m^2 per dwellings.

c) 3 or more-bedroom units must provide a minimum of 16m^2 per dwelling.

3.5.1.5 PARKING DESIGN AND VEHICULAR ACCESS

Refer to Part 6 – Traffic and Transport of this DCP for parking rates and requirements.

Objectives

O.01 Provide adequate off-street parking for residents.

O.02 Ensure that the location and design of driveways are efficient, safe, and integrated into the design of the development to minimise their visual impact.

O.03 Minimise the environmental impact of basement structures and ensure carparking does not become a visually dominant element on the site or in the streetscape.

Controls

C.01 Carparking of residential flat buildings is to be located within a basement.

C.02 Access from car park to dwellings must be direct and safe for residents during the day and night.

C.03 Driveways and pedestrian access paths are to be setback a minimum of 1 metre from side and rear site boundaries to provide boundary landscaping.

C.04 Loading/manoeuvring areas are to be located within the building or behind the building line facing the street and screened from adjacent residential uses.

C.05 Residential and non-residential car parking spaces are to be physically separated.

3.5.1.6 INTERNAL AMENITY

Objectives

O.01 Provide habitable rooms that are of a height and size that is functional and provides a high standard of amenity for occupants.

Controls

C.01 The minimum floor to ceiling height for all residential floors is to be consistent with the Apartment Design Guide.

C.02 Development is to be in accordance with the controls contained in Part 4 of the Apartment Design Guide. To demonstrate that this can be achieved, cross ventilation and solar access diagrams must be submitted with any development application.

C.03 Buildings are to be designed with narrow cross sections to support dual aspect dwellings that improve cross ventilation.

C.04 The finished floor level of all dwellings must not be more than 900mm above or 500mm below natural ground level. Where dwellings are located below natural ground level due to the slope of the land, development must:

a) demonstrate that adequate solar access to habitable rooms and private open space can be achieved,

b) provide a minimum of 5 metres between the face of the dwelling and any retaining wall or fencing, and

c) have a minimum floor to ceiling height of 3 metres.

3.5.2 KEY DEVELOPMENT STANDARDS FOR SHOP TOP HOUSING AND MIXED-USE DEVELOPMENT

Both shop top housing and mixed-use development combine non-residential uses such as retail, commercial and/or community uses with residential uses in a building or group of buildings on a site. Uses are generally arranged vertically with residential uses located on upper levels.

In the City of Parramatta (the City), shop top housing is typically found in centres and along main shopping streets and are traditionally defined by their narrow lot frontage, 2- to 3-storey height, consistent street alignment with a zero setback between buildings, and a ground floor retail or commercial use with residential apartments above.

Mixed use buildings are located in centres and MU1 mixed use zones. Lot amalgamation may be necessary to support the function, service, and access requirements. These buildings commonly include non-residential uses at ground floor and potentially at the first floor. Mixed use buildings may be part of an area with a contiguous street wall or sit along a street of separated buildings. Taller buildings may have a defined street wall with an upper-level setback and/or transition to separated building forms at upper levels. Non-commercial uses are best located along a street frontage with direct tenancy or lobby entries accessed from the street. On large sites, the area of the site away from the primary street frontage may transition to residential use at ground level, where residential amenity can be assured.

All controls contained in Section 3.5.2 – Key Development Standards for Shop Top Housing and Mixed-Use Development must be read in conjunction with Part 3 – Residential Development, Section 3.2 – General Residential Controls, Part 2 – Design in Context, Part 4 – Non-Residential Development, Part 5 – Environmental Management and Part 6 – Traffic and Transport of this DCP.

3.5.2.1 MINIMUM SITE FRONTAGE

Objectives

O.01 Ensure sites are of sufficient size to achieve:

a) the necessary standard of amenity in relation to privacy, solar access, private open space,

b) adequate building separation to meet the privacy controls of the Apartment Design Guide,

c) a sense of street address,

d) street activation to the required extent, and

e) safe and efficient access and servicing.

O.02 Ensure development does not isolate or compromise potential development on adjacent sites.

Controls

C.01 For shop top development in E1 zones, development lots must have a minimum site frontage width of 6 metres as measured along the front boundary line.

C.02 For mixed-use development in MU1 zones, development lots must have a minimum site frontage of 18 metres, as measured along the front boundary line.

C.03 Where a site has the minimum frontage width or more, it must nonetheless be demonstrated that the objectives O.01 and O.02 can be satisfied.

3.5.2.2 PRELIMINARY BUILDING ENVELOPE

Objectives

O.01 Ensure development contributes to a visual cohesiveness along the streetscape and identifiable uniformity in bulk, scale, setbacks, and height.

O.02 Provide space in residential areas for landscape amenity that also contributes to the public domain.

O.03 Provide adequate separation between buildings and protect adjoining buildings from overlooking and loss of amenity.

Controls

Building Height

C.01 The maximum building height is to be consistent with the *Parramatta LEP 2023* Height of Buildings Map and transition requirements in Section 2.4 - Building Form and Massing of this DCP.

C.02 Any part of a basement or sub-floor area that projects greater than 1m above natural ground level comprises a storey.

Street Setback

C.03 For mixed-use developments providing active uses at ground, buildings may be built to the street boundary, as per Figure 3.5.2.3.1.

C.04 Buildings must be set back consistent with the prevailing street setback.

C.05 Buildings must be set back must be a minimum of 3 metres from a laneway frontage to support boundary landscaping.

C.06 In development greater than 3 storeys, the upper levels of a development must be set back a minimum 3 metres from the street wall.

C.07 The street wall height of mixed-use development must generally be consistent with the predominant street wall height in storeys of adjacent buildings. An analysis of existing and likely future context must be submitted to determine the most appropriate street wall height and upper-level setback.

Side and Rear Setbacks

C.08 The residential component of any shop top housing and mixed-use development must provide side and rear setbacks that ensure compliance with the privacy and separation requirements of the Apartment Design Guide.

C.09 Where a zero side setback to the street wall is proposed and consistent with the predominant streetscape context, the residential component above the street wall height must provide side and rear setbacks that ensure compliance with the privacy and separation requirements of the Apartment Design Guide.

C.10 Where a site adjoining the subject site does not contain an apartment building at the time the development application is being assessed, the separation required will be that specified for habitable rooms and balconies in Section 3F of the Apartment Design Guide.

3.5.2.3 STREETSCAPE AND BUILDING ADDRESS

Objectives

O.01 Maximise opportunities for buildings to define and activate the public domain.

O.02 Encourage attractive street frontages and improve pedestrian amenity and safety.

Controls

C.01 In the E1 and MU1 zones, the ground floor frontage is to provide for non-residential uses with at-grade pedestrian access. Ground floor apartments are not permitted on primary street frontages.

C.02 Where buildings align to the front boundary, continuous awnings are to be provided, with new awnings the same height as, or the average of, the two adjacent awnings. Council may omit this requirement where an awning would otherwise affect street trees or heritage items.

C.03 Development should provide multiple building entries from the street. Each building entry and lift/stair core must not serve more than 25 dwelling per core for buildings up to 8 storeys.

C.04 Building entries and lobbies to residential apartments are to be separated from commercial entrances to provide secure and identifiable addresses.

C.05 Ground floor retail and business shopfronts are to involve minimal use of solid walls. Where sites are amalgamated, frontages are to be divided vertically into discrete sections to maintain a fine grain, human scaled streetscape.

C.06 An active ground floor frontage must be considered in detail and the following must be incorporated into its design, as per Figure 3.5.2.3.1:

a) A nominal 500mm interface zone at the frontage must be included to create interest and variety in the streetscape, to be used for setbacks for entries, openings of windows, seating ledges, benches, and general articulation.

b) The façade must have a high level of expressed detail and tactile material quality.

c) The base of the façade must achieve a well resolved meeting with the footpath that takes account of any slope. A horizontal plinth, integrated in the design, must be incorporated at the base of glazing to the footpath.

d) A clear path of travel must be provided in the public domain as defined in the Parramatta Public Domain Guidelines.

e) Legible entrances must be formed in the frontage.

f) Fire escapes and service doors must be seamlessly incorporated into the façade.

g) All required services must be integrated into the design of the ground floor frontage.

h) Parking security grilles or doors must be aligned to the building edge as closely as safety constraints permit.

i) Security doors or grilles must be designed to be fitted internally behind the shopfront, fully retractable and a minimum 50% transparent when closed.

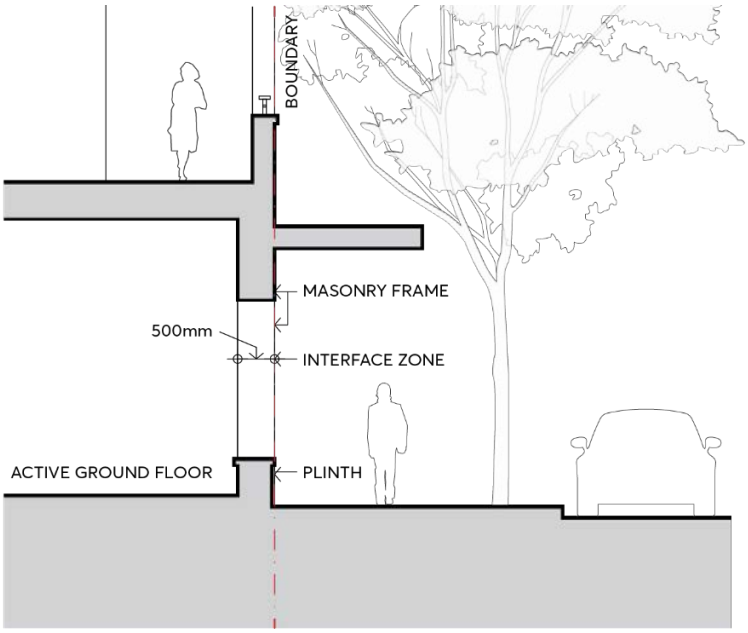


Figure 3.5.2.3.1 – Active Ground Floor Interface

C.07 Development proposing outdoor dining is to comply with Council's Outdoor Dining Guidelines.

C.08 Residential dwellings may be located on the ground floor at the rear of larger properties where building separation and privacy, and private open space can be provided in accordance with the Apartment Design Guide.

C.09 The principal entry to dwellings should not be provided off rear lanes except where:

a) the lane is well lit,

b) there is some natural surveillance of the lane from adjoining dwellings,

c) the lane provides access to other dwellings, and

d) the land is not regularly used by service vehicles.

C.10 Site planning and the internal building layout of developments should minimise the need for pedestrian pathways that are segregated from street. Where such pathways are necessary, casual surveillance should be encouraged, they should be well lit at night and be clear of potential hiding or entrapment spots.

3.5.2.4 OPEN SPACE AND LANDSCAPE

Objectives

O.01 Provide deep soil areas that support trees and landscaping that will mature and contribute to the amenity of the site and locality.

O.02 Design low maintenance communal open space areas for residents that facilitate opportunities for recreational and social activities, passive amenity, landscaping, and deep soil planting.

O.03 Provide communal open space that is proportionate with the height and length of development.

O.04 Ensure private open spaces are designed to provide residents with quality, usable private outdoor living areas for recreational and outdoor activities.

Controls

C.01 Private and communal open space must be provided to meet the objectives of the Apartment Design Guide.

C.02 The rear setback area must be provided as deep soil if:

a) part of the residential component is proposed at ground, or

b) the site adjoins a residential development or residential zone.

Otherwise, deep soil may be provided on merit.

3.5.2.5 PARKING DESIGN AND VEHICULAR ACCESS

Refer to Part 6 – Traffic and Transport of this DCP for parking rates and requirements.

Objectives

O.01 Encourage the integration of on-site parking and related structures with the building and landscape design of the site.

O.02 Locate carparking and service/delivery areas so they do not visually dominate either the development or the public domain surrounding the development.

Controls

C.01 At grade carparking areas and vehicular accessways are to be landscaped to integrate sympathetically with the development and the landscape character of the locality.

C.02 Large at grade carparking areas are to be broken up using landscaping. The design and layout must provide suitable and safe pedestrian movements, including separate pedestrian access to buildings which are clearly defined and easily negotiated.

C.03 Landscaping should be used to screen at-grade parking and loading areas and vehicular access points to minimise their visual impact. The area between property boundaries,

driveways, access ways and parking spaces is to be of sufficient width to enable landscaping and screen planting.

C.04 Any at grade carparking is not to encroach within building setbacks.

C.05 Basement carparking is to be:

a) Adequately ventilated.

b) Designed for safe and convenient pedestrian movement and to include separate pedestrian access points to the building that are clearly defined and easily negotiated.

c) Predominately located within the building footprint.

d) Located predominately below existing ground level. Where slope conditions mean this is unachievable, the basement projection of the floor level of the storey immediately above is to be less than 1 metre above existing ground level.

C.06 Carparking areas must be designed to minimise headlight glare onto the windows of dwellings within the site or neighbouring properties.

C.07 On sloping sites, basement carpark entry must be located in relationship to the site slope to minimise basement ramp gradients and their visual impact on the streetscape.

C.08 Where developments have a car park or internal laneway for access to a car park, building layouts should provide for windows, lighting or secondary access doors that address that car park.

C.09 Access from the car park to dwellings should be direct and safe for residents during the day and night.

3.5.2.6 INTERNAL AMENITY

Objectives

O.01 Provide habitable rooms that are of a height and size that is functional and provides a high standard of amenity for occupants.

Controls

C.01 In MU1 Mixed Use zones, building layouts are to be flexible to allow variable tenancies or uses on the ground floor for mixed used developments and residential flat buildings.

C.02 For all mixed-use developments, potential management arrangements, including ownership/lease patterns are to be considered at the design stage to ensure proper functioning of various components of the building.

C.03 The minimum floor to ceiling heights on the ground floor should be 4 metres to encourage flexibility.

C.04 The minimum floor to ceiling height is 3.5 metres for non-residential uses above the ground floor.

C.05 The minimum floor to ceiling height for residential uses is to be consistent with the Apartment Design Guide.

C.06 Buildings are to be designed with narrow cross sections to support dual aspect dwellings that improve cross ventilation.

C.07 Consideration must be given to the relationship between residential and non-residential components of mixed-use development regarding noise attenuation and privacy. Refer to Section 3.2.2 of this DCP for visual and acoustic privacy requirements.

3.6 RESIDENTIAL SUBDIVISION

Subdivisions should reflect and reinforce the established subdivision pattern of the locality and be consistent with the minimum lot size requirements applicable for the permissible use. Subdivision of large sites should allow for a range of lot sizes to suit a mix of housing types and sizes, consistent with the Housing Diversity Precinct Criteria specified in Parramatta's Local Strategic Planning Statement 2036.

Proposed subdivisions are to be designed to:

- take account of topography, minimising the need for cut and fill associated with the dwelling and driveway construction,
- protect natural and cultural/heritage features,
- retain significant trees and vegetation communities, and
- have regard to views to and from the site.

Objectives

O.01 Ensure that subdivision of land for residential development has regard to site opportunities and constraints.

O.02 Respect the predominant subdivision pattern of the locality.

O.03 Ensure that lots of sufficient size are created to facilitate development that provides for:

a) a suitable building platform,

b) outdoor open space and service space,

c) landscaped area,

d) vehicular access that connects to a public road, and

e) on-site parking.

O.04 Maximise solar access potential for future dwellings through lot orientation.

Controls

C.01 Subdivision is to result in lots which meet the minimum lot sizes and lot width requirements of *Parramatta LEP 2023* and the requirements set out in Part 2 – Design in Context, Part 3 – Residential Development, and Part 7 – Heritage and Archaeology of this DCP.

C.02 The creation or subdivision of battle-axe lots is strongly discouraged.

C.03 Where battle-axe lots are proposed, a minimum access corridor width of 3.5 metres must be provided. Access corridors must:

a) provide safe and practical vehicular access to a formed public road,

b) allow vehicles to leave the driveway in a forward direction,

c) make provision for vehicles to pass where necessary,

d) include appropriate landscaping to maintain the amenity of the area, and

e) be accessible for service providers and emergency services.

C.04 Residential subdivision is to be designed to provide future development with a clear address to the public domain.

C.05 For the subdivision of dual occupancies, equal or similar proportions in site area are to be provided for each dwelling and a minimum frontage of 7.5 metres to a public road provided for each dwelling resulting from the subdivision of the dual occupancy.

C.06 No form of subdivision of a secondary dwelling from the principal dwelling is permitted.

C.07 Where appropriate, subdivisions are to provide connections for public access, both vehicular and pedestrian within and beyond the site and are to facilitate open space linkages.

C.08 Adequate provision is to be made within new lots for infrastructure services.

C.09 Subdivision of land in close proximity to areas likely to be affected by bushfire is to be carried out in accordance with the Planning for Bushfire Protection, NSW Rural Fire Services 2019.

3.6.1 SITE CONSOLIDATION AND DEVELOPMENT ON ISOLATED SITES

Objectives

O.01 Encourage site consolidation of allotments for multi-unit housing and residential flat developments in order to promote the efficient use of land and to avoid the creation of isolated sites.

O.02 Encourage the development of existing isolated sites in a manner that responds to the site's context and characteristics and that maintains a satisfactory level of amenity.

Controls

C.01 Development for the purpose of multi dwelling housing, residential flat buildings, shop top housing or the like is not to result in the creation of an isolated site that could not be developed in compliance with the relevant planning controls, including *Parramatta LEP 2023* or this DCP.

C.02 Council will require appropriate documentary evidence to demonstrate that a genuine and reasonable attempt has been made to purchase an isolated site based on a fair market value. At least one recent independent valuation is to be submitted as part of that evidence and is to account for reasonable expenses likely to be incurred by the owner of the isolated site in the sale of the property.

C.03 Where amalgamation of the isolated site is not feasible, applicants will be required to demonstrate that an orderly and economic use and development of the separate sites can be achieved.

C.04 Applicants will be required to detail an envelope for the isolated site, indicating height, setbacks, resultant site coverage (building and basement), sufficient to understand the relationship between the application and the isolated site. The likely impacts the developments

will have on each other, such as solar access, visual and acoustic privacy and the impact of development of the isolated site on the streetscape must also be addressed.

C.05 The development of existing isolated sites is not to detract from the character of the streetscape and is to achieve a satisfactory level of amenity including solar access, visual and acoustic privacy. Development of existing isolated sites may not achieve the maximum potential, particularly height and floor space ratio, and will be assessed on merit.

C.06 Where adjacent sites are developing concurrently, site planning options for development as an amalgamated site are to be explored.

3.7 BOARDING HOUSES

Boarding houses play a key role in providing affordable accommodation options. Council encourages the retention and the provision of boarding house stock to assist in meeting the housing needs of all residents in the City of Parramatta (the City). The DCP aims to set additional guidelines to ensure that boarding houses are of a high-quality and standard for potential residents.

Private open space, internal amenities of a high quality, common spaces and facilities are of significant importance for boarding house residents. Additionally, boarding houses should be located in an accessible area to ensure residents are within a close proximity to transport options, employment hubs, key services, and entertainment and recreation.

The NSW State Government has various mechanisms in place to encourage the provision and retention of boarding house accommodation including *State Environmental Planning Policy (Housing) 2021* (Housing SEPP); the Office of State Revenue's land tax exemptions for boarding houses; and Housing NSW's Boarding House Financial Assistance Program which offers grants to boarding house owners for fire safety upgrades.

This Section of the DCP applies to:

- The demolition or change of use of an existing boarding house.
- The establishment of a new purpose built boarding house.
- Conversion or adaptation of existing buildings to a boarding house.
- Alterations and/or additions to, or intensification of an existing boarding house.

Note: Boarding house has the same meaning as in the *Parramatta LEP 2023*.

Part of the development application process may involve consideration of the requirements of Housing SEPP. The Housing SEPP provides a means to retain low cost rental accommodation through the development application process. This includes development applications that propose works to existing boarding houses which must have regard for Part 3 of the Housing SEPP.

If the development proposal incorporates demolition of the boarding house; or alterations or additions to the structure or fabric of the inside or outside of the boarding house; or changing the use of the boarding house to another use (particularly to backpackers' accommodation), the consent authority must have regard to Part 2 of the Housing SEPP.

Part 2 of the Housing SEPP also provides development controls for boarding house development. Where there are any inconsistencies between this DCP and the SEPP, the SEPP will prevail to the extent of the inconsistency.

All controls contained in Section 3.7 – Boarding Houses must be read in conjunction with Part 3 – Residential Development, Section 3.2 – General Residential Controls, Part 2 – Design in Context, Part 5 – Environmental Management and Part 6 – Traffic and Transport of this DCP.

Building Classifications under the Building Code of Australia

The BCA provides technical provisions for the design and construction of boarding houses including fire safety, access and structural stability. Reference should be made to the BCA and relevant Australian Standards that are contained in the BCA to ensure compliance with all relevant requirements. The BCA classifies buildings according to the purpose for which they have been designed, constructed or intended to be used. Boarding houses fall under two separate classifications under the BCA as detailed In Table 3.7.1 below.

Table 3.7.1 – BCA Building Classifications

BCA Building Class	Definition
Class 1(b)	A boarding house, guest house, hostel or the like, with a total floor area not exceeding 300m^2 and in which not more than 12 persons would ordinarily be resident, which is not located above or below another dwelling or another Class of building other than a private garage.
Class 3	A residential building, other than a building of Class 1 or 2, which is a common place of long term or transient living for a number of unrelated persons, including a boarding house, guest house, hostel, lodgings house or backpackers' accommodation.

Objectives

O.01 Encourage the provision of high-quality boarding houses within the City.

O.02 Recognise boarding house accommodation as an essential component of residential housing for low to moderate income earners and the socially disadvantaged within the City.

O.03 Minimise the potential adverse impacts of boarding houses on adjoining properties and the wider locality by introducing effective planning, design and on-going management controls.

O.04 Ensure a high level of amenity in boarding house premises to meet the needs of residents.

O.05 Ensure the appropriate level of fire safety within all boarding houses, and that acceptable levels of service provision are maintained.

O.06 Ensure that boarding houses are appropriately located within the City to ensure the safety, security, health and amenity for both boarding house residents and adjoining neighbours.

O.07 Ensure that all new boarding houses are compatible with the scale and character of the surrounding built form.

O.08 Ensure the size and intensity of boarding house developments are suitable for the zone in which they are proposed to be located.

O.09 Encourage the provision of boarding houses within close proximity of public transport services and within areas where there is appropriate access to services and facilities, employment opportunities, entertainment and recreation.

O.10 Ensure that boarding houses are able to be accessed by all people.

O.11 Ensure that boarding houses comply with the performance requirements of the Building Code of Australia.

Location Criteria

O.12 Ensure that boarding house residents have reasonable access to retail and commercial services, community facilities, recreational and entertainment facilities, employment opportunities, and public transport services.

O.13 Ensure that public transport services available to boarding house residents are frequent and provide access to a suitable range of services, facilities, and employment opportunities.

O.14 Ensure that the intensity and size of a boarding house development within low density residential zones is compatible with the scale and character of predominant development in the zone.

Controls

C.01 When considering an application for a boarding house development, Council must be satisfied that residents of the proposed development will have reasonable access to the following:

a) retail and commercial services that residents may reasonably require to meet their daily needs;

b) community services and facilities;

c) recreation and entertainment facilities;

d) opportunities for employment; and

e) public transport services.

Access is deemed to satisfy if:

a) there is a railway station or a wharf from which a ferry service operates, within a walking distances of 800m from the site; or

b) the facilities and services likely to meet the daily needs of residents are located within a walking distance of 400 metres from the site; and

c) there is a regular public transport service available to additional retail and commercial services, community services and facilities, recreation and entertainment facilities and employment opportunities, within a walking distance of 400 metres from the site, that:

i. is available both to and from the site at least once every hour between 8.00am and 6.00pm Monday to Friday; and

ii. will take those residents to a place that is located no more than 400 metres to those services and facilities, and

iii. the likely path of travel is reasonable with regard to topography and pedestrian connectivity.

Where a proposed development cannot meet the above criteria, the applicant will be required to demonstrate to Council's satisfaction how boarding house residents will achieve alternative access to retail and commercial services; community services and facilities; recreation and entertainment facilities; opportunities for employment; and public transport services.

Retention of Existing Boarding Houses

C.02 Where a development application proposes the demolition or change of use of an existing boarding house, Council must have regard to the provisions of Part 2 of the Housing SEPP. Where an existing boarding house is not covered by the parameters of Part 2 of Housing SEPP, Council may require the submission of a Social Impact Assessment to accompany the development application, and should consider the social and economic impacts of development under Section 4.15 of the *Environmental Planning and Assessment Act 1979*.

Site Planning

As many boarding houses occur as infill development in established areas, a sympathetic relationship with adjoining development is critical to their long-term success. A site analysis is required to establish the site context and should be reflected in the design, addressing the constraints and opportunities of the site and its context.

C.03 A site analysis is to be submitted with all new boarding house development applications. Detail of what should be included in a site analysis is provided in Part 2 – Design in Context of this DCP.

Building Form and Appearance

C.04 New development (including alterations and additions) shall be consistent with the predominant built form and design elements of the surrounding locality and streetscape. Refer to Part 2 – Design in Context and Part 3 – Residential Development of this DCP.

C.05 The main entrance of the boarding house should be provided within the front (street) elevation to address the street and to minimise potential privacy impacts upon neighbouring properties.

C.06 Development is to be designed and sited to minimise the extent of shadows that it casts on:

a) private and communal open space within the development;

b) private and communal open space of adjoining dwellings;

c) public open space such as bushland reserves and parkland;

d) solar collectors of adjoining development; and

e) habitable rooms within the development and in adjoining developments.

C.07 Landscaped treatment at the front of the site should be compatible with the streetscape in which the building is located.

C.08 If the boarding house is on land zoned primarily for commercial purposes, no part of the ground floor of the boarding house that fronts a street is to be used for residential purposes.

Building envelope

C.09 New development shall comply with the relevant height and floor space ratio controls prescribed by the *Parramatta LEP 2023*.

C.10 New boarding houses (including alterations and additions) shall comply with the Key Development Standards contained in Part 3 – Residential Development or Part 4 – Non-Residential Development of this DCP for the comparable predominant building type in the relevant zone where the new development is proposed. See Table 3.7.2 for zone of proposed boarding house with comparable controls applied.

Table 3.7.2 – Boarding House Development Zones and Envelope controls

Zone in which boarding house development is proposed	Development type building envelope controls to be referred to in Part 3 – Residential Development or Part 4 – Non-Residential Development of this DCP or area specific controls for Special Precincts
R2 Low Density Residential	Dwelling house
R3 Medium Density Residential	Multi-dwelling housing
R4 High Density Residential	Residential flat building
E1 Local Centre	Shop top housing
MU1 Mixed Use	General MU1 Zone

Occupation Requirements

C.11 A maximum number of 12 bedrooms per boarding house will be permitted R2 Low Density Residential zones and shall have a maximum of 12 residents.

The total number of rooms in boarding houses located in the R3 Medium Density Residential zone, R4 High Density Residential zone, MU1 Mixed Use zone and E1 Local Centre zone will be required to demonstrate that the proposal will not have an adverse impact upon the amenity of the surrounding neighbourhood with regard to noise, privacy, overshadowing, traffic generation, and the like.

C.12 Any shared rooms are to be limited to a maximum of 2 occupants per room.

C.13 Residents of the boarding house must enter into a lease or licence agreement with the managing agent agreeing to comply with the boarding house rules and fees payable. The length of the lease is to be determined by the managing agent, but must be for a minimum of 3 months.

Operation Management

C.14 All boarding houses are to have a managing agent, contactable 24 hours per day, 7 days per week. If a boarding house has capacity to accommodate 20 or more lodgers, it is required that there be an on-site resident manager. The on-site resident manager must be 18 years of age or over. The on-site resident manager will be provided with a double room.

C.15 The name and contact details of the on-site manager or managing agent is to be provided externally at the front entrance of the boarding house and internally within the communal living area.

C.16 A Plan of Management must accompany a development application for any new boarding house or intensification of an existing boarding house. The Plan of Management must be completed in accordance with Council's Guide to Plans of Management for Boarding House Developments. The approved Plan of Management will form part of any development consent. Copies of the approved Plan of Management must be provided to the relevant managing agent.

C.17 'House Rules' must be prepared as part of the Plan of Management. The approved House Rules must be clearly displayed within each bedroom and within the communal living area of the boarding house. House rules should address the following at a minimum:

1. maximum room occupation

2. maintainence of rooms
3. use of common areas (indoor and outdoor)
4. keeping of animals
5. resident and guest behaviour
6. guest policy
7. access to rooms for inspection
8. cooking and dining
9. waste disposal
10. damage/breakages/loss of keys
11. fire safety
12. smoking, consumption of alcohol and drugs
13. noise control

C.18 An Emergency Evacuation Plan must be prepared as part of the Plan of Management detailing the evacuation procedures in the event of the emergency, provision of resident log book, identifying the assembly point and detailing how residents will be made aware of the procedures contained within the Plan. Copies of the approved Emergency Evacuation Plan must be provided to the relevant managing agent, and a copy must be provided to all residents.

C.19 A list of contact details must be clearly displayed within the common area including the contact details for: the managing agent; emergency services including fire, ambulance and police; utilities such as gas, electricity, water and any approved emergency repair persons such as a plumber, electrician etc.

C.20 Copies of the Plan of Management including the House Rules, Emergency Evacuation Plan and managing agent's details must be provided to all residents and must be available for neighbours to view.

C.21 Developments of 3 storeys or more must incorporate a lift capable of accommodating a stretcher and must be accessible at each floor.

Annual Certification/Registration

C.22 Boarding houses are to be registered with Council prior to the issue of an occupation certificate and annually thereafter.

C.23 Boarding houses providing accommodation for 2 or more people with a disability (as defined by the *Youth and Community Services Act 1973*) must be registered in accordance with the *Youth and Community Services Act 1973* and licensed by the NSW Department of Ageing, Disability and Home Care.

Design of Boarding Houses - General

C.24 Boarding houses must provide the following facilities within each building:

A. Bedrooms
B. Communal laundry facilities
C. Communal kitchen and dining area (one per floor for multi storey boarding houses)
D. Individual ensuite and/or communal bathrooms

E. Communal lounge room (one per floor for multi storey boarding houses)

F. Communal garbage storage and recycling facilities

G. Communal outdoor open space area

H. Car parking (as required by this DCP)

I. On-site manager accommodation (where 20 or more lodgers)

C.25 Floor coverings throughout the boarding house should be impervious, washable and flame resistant.

C.26 All furniture and fittings required to be provided within individual rooms and communal area must be permanently affixed to the building/site, must be easy to clean/maintain, and must be kept in a suitable state of repair.

C.27 All parts of the premises including furniture, fittings, cooking equipment, fridges, beds, and bed linen must be kept in a clean condition and free from vermin.

C.28 Fly screens are to be provided to all openable windows and doors.

C.29 Liquid soap dispensers must be provided to all hand basins, showers, baths, and laundry tubs.

C.30 At least one phone must be provided within the communal area to allow residents to contact emergency services.

C.31 Where internal doors are provided to kitchens or communal areas, these must be clear glazed and impact resistant in accordance with the BCA.

C.32 Use of ducted air conditioning systems is highly encouraged to eliminate the use of portable heating devices which may cause fire hazard.

C.33 A safety switch must be fitted to all electrical meter boxes.

C.34 A maximum of one T.V. antenna is to be provided per boarding house.

Minimum Size and Design for Bedrooms

C.35 The minimum size for a bedroom within a boarding house must be in accordance with Table 3.7.3.

Table 3.7.3 – Minimum Room sizes for Boarding Houses

Bedroom Type	Minimum Room Size
Single person bedroom	12m²
Two person bedroom	16m²
Single person bedroom plus ensuite bathroom	15m²
Two person bedroom plus ensuite bathroom	19m²
Adaptable room	Applicant to demonstrate minimum circulation requirements within sleeping room in accordance with AS 1428.1.
Adaptable room plus accessible ensuite bathroom	Applicant to demonstrate minimum circulation requirements within sleeping room and ensuite bathroom in accordance with AS 1428.1.

Manager/Caretaker bedroom plus ensuite	16m²
Kitchenette (for fire rated rooms only)	2m²

C.36 The minimum storage facilities and furnishings must be provided within each bedroom as outlined in Table 3.7.4. A furniture layout plan must be provided at 1:100 or 1:50 scale for each room type. Maintenance and cleaning of furniture and fittings must be detailed in the Plan of Management.

C.37 No boarding room is to have a gross floor area (excluding any area used for an ensuite, bathroom or kitchenette) of more than 25m².

Note: The maximum gross floor area room size does not apply to on-site resident manager accommodation.

Table 3.7.4 – Minimum requirements for Facilities

Facility Type	Minimum Requirement
Secure storage facility	Minimum capacity of 1 metres cubed per person. This space must be lockable.
Minimum fixed room furnishings per room	• Single bed (per resident if twin share) including mattress (minimum 800mm x 1,900mm), base, waterproof mattress protector • Wardrobe – preferably built in (per resident if twin share) • Mirror • Table • Chair (per resident if twin share) • Lamp (per resident if twin share) • BCA compliant latching device • Separate waste and recycling containers • Window coverings • 1 x phone connection • 2 x twin electrical power points • 1 x television outlet • Sink including hot and cold water, ancillary bench and cupboard space. • For Class 3 buildings it is recommended that a kitchenette be provided within each room. Where kitchenettes are provided in individual boarding house rooms, these rooms must be fire rated in accordance with the BCA.

C.38 Bedroom design must comply with the BCA with regard to requirements for natural light, natural ventilation, ceiling heights, and fire safety.

C.39 Individual bedrooms must be key lockable.

Minimum Size and Design for Bathrooms

C.40 Provision of individual ensuite bathrooms for each room is highly encouraged, particularly for wheelchair accessible rooms.

C.41 Where ensuite bathrooms are not provided, communal bathroom facilities shall be provided in accordance with Table 3.7.5 below:

Table 3.7.5 – Minimum size and design for bathrooms

Description	Minimum Requirement
Class 1(b) and 3 Buildings	Bathroom facilities must comply with the minimum requirements of the BCA and be in an accessible location for all residents. The minimum requirement is 1 bath or shower for each 10 residents or part thereof and 1 toilet and washbasin with hot and cold running water for each 10 residents or part thereof.
Minimum Size	The minimum size of any bathroom will be determined by ensuring that minimum circulation spaces for disabled persons can be accommodated in accordance with AS 1428.1

C.42 Communal toilet facilities shall be provided in a separate room to communal shower bathroom facilities.

C.43 Hot and cold water must be provided in all showers, baths and hand basins.

C.44 Where communal bathrooms are provided, separate facilities should be provided for male and female residents.

Minimum Size and Design for Kitchens, Laundries and Clothes Drying Facilities

C.45 The requirements for kitchens, laundries and clothes drying facilities must be provided in accordance with Table 3.7.6.

Table 3.7.6 – Minimum size and Design for Kitchens, Laundries and Clothes Drying Facilities

Facility Type	Minimum Requirement
Kitchen Facilities – General	• All kitchen areas shall be maintained in a clean and sanitary condition at all times. • No bathrooms, toilets or bedrooms shall open directly onto communal kitchen facilities. • The floor of the kitchen area shall be constructed of a smooth impervious surface. • Where food is proposed to be provided as part of boarding house operations, or is for sale, kitchen and food areas shall comply with requirements of the food safety standards adopted under the *NSW Food Act 2003*. Guidelines for design and construction are provided under Australian Standard AS 4674 'Design, construction and fitout of food premises'. Provision shall be made for sufficient ventilation, and any mechanical exhaust systems installed are to be in accordance with the BCA.

Facility Type	Minimum Requirement
	• Kitchen facilities shall be available for all residents 24 hours per day. • Provision of communal cooking and dining equipment including utensils, pots, pans, cutlery, crockery etc is highly encouraged.
Kitchen/Dining Facilities	• A communal kitchen and dining area with a minimum area of 20m², plus 1m² per resident over 12 residents. **Note:** Class 1(b) buildings are to have a maximum of 12 residents. The following must be provided at a minimum: • Bench top for food preparation; • 1 sink for every 6 residents with running hot and cold water; • 1 stove top cooker for every 6 residents; • A refrigerator with storage space of 0.13m³ per resident; • A freezer with storage space of 0.05m³ per resident; • Storage for dry goods of 0.30m³ per resident; • Exhaust ventilation; • Waste disposal and recycling containers; • Microwave oven; • Toaster and kettle; • A lockable drawer or cupboard for food storage for each resident; and • Dining table and chair (or similar) allowing for one space per resident. **Note:** Kitchen size and facilities may be reduced where kitchenettes are provided.
Laundry Facility Requirements	• Automatic washing machine for the first 12 residents plus 1 automatic washing machine for every additional 12 residents thereafter or part thereof. • 1 domestic dryer for first 12 residents plus 1 domestic dryer for every additional 12 residents thereafter or part thereof. • 1 large laundry tub with running hot and cold water for up to 12 residents and one additional tub for premises that contain more than 12 residents. • 2.5 metres of outdoor clothesline per resident (can be retractable).
Location of Clothes Drying Facilities	• Drying areas must not be visible from the street or any public place. • Drying areas shall be located to maximise solar access. • Clothes drying and laundry facilities shall be wheelchair accessible.

Minimum Size and Design for Internal Communal Living Areas and External Recreation Areas

C.46 The requirements for internal communal living areas and external recreational areas must be provided in accordance with Table 3.7.7.

Table 3.7.7 – Minimum Size and Design for Internal Communal Living Areas and External Recreation Areas

Facility Type	Minimum Requirement
Internal Communal Living Area	• All boarding houses are to provide a common living area of a minimum 30m² in area, with a further 2m² provided per boarding room in excess of 6 boarding rooms. • Class 1(b) buildings are to have a maximum of 12 residents. • Living areas are to have a minimum dimension of 4 metres. • Furniture including lounge suites and coffee tables are encouraged.
Location of Internal Communal Living Area/s	• Communal living area/s must be located on the ground floor and are to be located near commonly used spaces or adjacent to the communal outdoor open space. An additional communal living area shall be provided on each level for multi-storey Class 3 level boarding houses. • Communal living area/s should have a northerly aspect where possible and should be located where they will have a minimal impact on adjoining properties in terms of noise generation and visual privacy. • Consideration should be given to ensure that bedrooms adjoining the living area/s are protected from excessive noise. • The use of highlight windows on upper levels is encouraged along side boundaries to minimise direct overlooking, particularly when adjoining or adjacent to residential properties.
Calculation of Communal Living Areas	• The floor area of bedrooms, bathrooms, laundries, storage, kitchens, car parking, driveways, clothes drying areas, corridors and the like are not counted when determining the area of internal communal areas.
Communal Outdoor Area	• A communal outdoor area must be provided for all boarding house developments. This space must be provided behind the front setback line. The design of the communal outdoor area will also need to be designed with regard to the 'Building Envelope Controls'. • The communal outdoor area shall have a minimum area of 30m², with a minimum dimension of 3 metres and should be partly covered to provide weather protection. • The communal outdoor area should be directly accessible from communal internal living areas. • Where possible, both hard and soft landscaped areas shall be provided within the outdoor communal area. • Communal facilities that encourage interaction between residents including fixed outdoor tables and chairs, BBQs and the like are encouraged.

Private Open Space

C.47 Consider opportunities for the provision of private open space to individual rooms where it will not result in a visual or acoustic privacy impact upon neighbouring properties.

C.48 If accommodation is provided for an on-site manager, one area of at least 8m^2 with a minimum dimension of 2.5 metres is to be provided adjacent to that accommodation, other than in the front setback area.

Acoustic Amenity

C.49 For new boarding house developments (including intensification of, or conversion of an existing building), adequate sound insulation shall be provided between bedrooms, in accordance with the BCA, to ensure reasonable amenity for residents.

C.50 Boarding house design should attempt to locate bedrooms away from significant internal and external noise sources.

C.51 During the design of a new boarding house (including intensification of, or conversion of an existing building), consideration must be given to the potential acoustic impact upon adjoining neighbours. The following noise abatement issues should be considered at the design stage:

- location of windows in respect to the location of windows on neighbouring properties;
- sensitive location of communal outdoor areas away from main living areas or bedroom windows of any adjoining dwelling (where possible);
- the use of screen fencing or acoustic barriers as a noise buffer to external noise sources;
- the incorporation of double glazing of windows or use of glass blocks (for light penetration but not suitable where natural ventilation is also required); and
- locate similar building uses (such as bedrooms or bathrooms) back to back internally within the building, to minimise internal noise transmission.

C.52 An Acoustic Impact Assessment prepared by a suitably qualified person shall accompany all boarding house development applications, identifying (but not limited to) the following:

- Identification of sensitive noise receivers potentially impacted by the proposal;
- Quantification of the existing acoustic environment;
- Detail of the acoustic mitigation measures to be implemented in the proposal;
- Identification of noise likely to be generated by the proposal based on full occupation; and
- Certification that the proposal is capable of operating without causing nuisance, including a statement of mitigation measures required to ensure this.

Note: An Acoustic Impact Assessment will not be required for minor alterations and additions to existing boarding houses where resident numbers will not increase.

Visual Privacy

C.53 Placement of windows and other openings should not result in overlooking of adjoining residential uses. Where overlooking may occur, use of highlight windows, window screening or similar mechanism should be used. Refer to Section 3.2.2 – Visual and Acoustic Privacy of this DCP.

C.54 Landscape screening should be provided within outdoor communal areas to minimise overlooking of adjoining properties.

Access for People living with a disability

C.55 All new boarding houses (including building conversions or additions to existing premises) should comply with the minimum access requirements contained within the BCA and AS 1428.1 – Design for Access and Mobility.

C.56 Disabled access must be provided to all wheelchair accessible bedrooms, internal and external communal facilities (including waste storage area, car parking area, clothes drying area) and to the adjoining roadway.

C.57 Wheelchair accessible/adaptable bedrooms with an ensuite bathroom shall be provided in all new boarding house developments (including building conversions, substantial alterations and additions or intensification of an existing development) at the rate of 1 per 10 bedrooms (or part thereof). At minimum, 1 wheelchair accessible/adaptable bedroom with ensuite bathroom shall be provided.

Sustainability, Energy Efficiency and Solar Access

C.58 All development applications for new boarding house developments (including substantial alterations and additions) must be accompanied by a BASIX Certification prepared in accordance with *State Environmental Planning Policy (Building Sustainability Index: BASIX) 2004* and comply with applicable controls within Part 5 – Environmental Management in this DCP.

C.59 All whitegoods and appliances provided within the boarding house must have a minimum 3.5 star energy rating.

C.60 Boarding houses should be located so that solar access to at least one communal open space area and to communal living area windows is achieved for at least 3 hours between 9am and 3pm during the winter solstice (21 June).

C.61 Dwellings on adjoining properties are to receive a minimum of 3 hours sunlight in habitable rooms and in at least 50% of the private open space between 9am and 3pm on 21 June. Where existing development currently receives less sunlight than this requirement, this should not be unreasonably reduced. In order to demonstrate that this can be achieved, shadow diagrams may be required with the development application.

Car and Bicycle Parking

C.62 Car parking spaces and bicycle storage spaces shall be provided and designed in accordance with the standards referred to in Part 6 – Traffic and Transport of this DCP.

C.63 A Traffic Impact Assessment shall be prepared for all new boarding house developments detailing how any overflow parking demand will be managed. This should form part of the Plan of Management. Overflow parking refers to any car parking demand generated by the proposal that cannot be satisfied by meeting Council's minimum parking requirements for boarding houses.

Waste Management

C.64 Communal garbage and recycling facilities are to be provided within the development site. The waste storage area must be suitably enclosed, screened from view from the street, and located behind the front setback line. Facilities to cleanse storage containers on-site are to be provided.

C.65 Waste storage areas shall be provided in an accessible location, and must achieve at grade access to the street for collection.

C.66 New boarding houses and the intensification of existing boarding houses must comply with Part 5 – Environmental Management of this DCP and must submit a Waste Management Plan with the development application.

C.67 Waste management must be provided in accordance with Part 5 – Environmental Management and Appendix 2 – Waste Management Guidelines of this DCP

C.68 If contaminated sharps are generated, non reusable sharps containers shall be provided in accordance with relevant Australian Standards for disposal. Final disposal must be undertaken by licensed contaminated waste contractors.

Fire Safety

C.69 All boarding house developments shall comply with the fire safety requirements of the BCA.

C.70 Premises providing shared accommodation must display current annual fire safety certification in a prominent location.

C.71 A floor plan must be permanently affixed to the inside of the door of each bedroom detailing emergency egress routes from the respective bedroom.

C.72 An Emergency Evacuation Plan must be provided as part of the required Plan of Management.

C.73 Hard wired smoke detectors shall be provided within all bedrooms and within communal areas in accordance with the BCA.

C.74 For fire safety reasons any potential ignition sources (e.g. candles, incense, lighters, smoking or open flames), cooking or heating facilities (including any plug in microwave, electric frying pan, toasters, kettles, heaters and the like) must not be provided or used within individual bedrooms unless rooms are individually fire rated.

C.75 Where kitchenettes are provided in individual rooms, rooms must be fire rated.

C.76 Windows shall be key lockable only and no bars are to be affixed to the windows.

C.77 A portable fire extinguisher and fire blanket must be provided within any kitchen (including kitchenettes) in accordance with AS 2444-2001 – Portable fire extinguishers and fire blankets - Selection and location.

Note: Housing NSW administers the Boarding House Financial Assistance Program which offers grants to boarding house owners for fire safety upgrading.

Signage

C.78 Signage will be limited to a maximum of one sign per street frontage, detailing only the name and address of the premises and contact details of the managing agent. Signage must be affixed to the front elevation of the building or the front fence.

C.79 The sign/s shall have a maximum area of 0.25m^2 (e.g. 50cm x 50cm).

C.80 Signage shall be non-illuminated.

Strata Subdivision

C.81 As a boarding house is required to be maintained and operated in a single entity; strata subdivision of a boarding house is not permitted.

Further Information

Building Code of Australia

Environmental Planning and Assessment Act 1979

Environmental Planning and Assessment Regulation 2000

Food Standards Australia New Zealand Act 1991

Local Government Act 1993

Local Government (General) Regulation 2005

Public Health Act 1991

Public Health (General Regulation) 2021

Protection of Environment Operations Act 1997

State Environmental Planning Policy (Housing) 2021

The Disability Discrimination Act 1992

Youth and Community Services Act 1973

Residential Tenancies Act 2010